Introduction

Criminal Law

- Branch or division of law which defines crimes, treats of their nature, and provides for their punishment.

Crime

- An act committed or omitted in violation of a public law forbidding or commanding it.

Sources of Philippine Criminal Law (RSP)

1. The Revised Penal Code (Act No. 3815) and its amendments
2. Special Penal Laws
3. Penal Presidential Decrees issued during the Martial Law

Court decisions - not a source. They merely explain the meaning of, and apply, the law as enacted by the legislative branch of the Philippines.

Common Laws

- Common law crimes are not recognized in the PH, unless there be a particular provision in the penal code or special penal law that defines and punishes the act.
    - US v.s. Taylor, 28 Phil. 599, 604

Power to define and punish crimes

- **State** has the authority, under its police power, to define and punish crimes and to lay down the rules of criminal procedure.
- This power is given to the state by its people in order for the former to be able to look after the rights of the latter.

Limitations on the power of the lawmaking body to enact panel legislation *(from the Bill of Rights of the 1987 Constitution)*

1. No ex facto law or bill of attainder shall be enacted. (Article III, Sec. 22)
    a. Prohibits the passage of retroactive laws which are prejudicial to the accused.
2. No person shall be held to answer for a criminal offense without the due process of the law. (Article III, Sec. 14)

Ex post facto prejudicial to the accused

1. Makes criminal an act done before the passage of the law and which was innocent when done, and punishes such an act
2. Aggravates a crime
3. Changes the punishment and inflicts a greater punishment than the law annexed to the crime when committed;
4. Alters the legal rules of evidence, and authorizes conviction upon less or different testimony than the law required at the time of the commission of the offense
5. Assumes to regulate civil rights and remedies only, in effect imposes penalty or deprivation of a right for something which when done was lawful; and
6. Deprives a person accused of a crime some lawful protection to which he has become entitled facto law.

Congress is prohibited from passing an act which would inflict punishment without judicial trial, for that would constitute a bill of attainder.

Bill of attainder

- Legislative act which inflicts punishment without trial. Its essence is the substitution of a legislative act for a judicial determination of court.
    - People vs Ferrer, 48 SCRA 382, 395

Constitutional rights of the accused

- Article III, Bill of Rights
    - All persons shall have the right to a speedy trial, due process, reasonable bail, be presumed innocent until the contrary is proven, against self-incrimination, free access to courts and legal assistance by reason of poverty, etc.

Statutory rights of the accused

- Section 1, Rule 115, of the Revised Rules on Criminal Procedure states the accused shall be entitled to be informed of the accusations against him, be present and defend in person by counsel at every proceeding, testify as a witness on his own behalf, be exempt from being compelled to be a witness against himself, to confront and cross-examine the witnesses against him, to have compulsory process issued, to appeal in all cases allowed, etc.

Waiving of rights of the accused

- A right may be waived when it is personal (confrontation and cross-examination).
- A right may not be waived when it involves public interest (to be informed of the nature and cause of the accusation against him).

Characteristics of Criminal Law

1. **General**
    - Binding on all persons who live or sojourn in Philippine territory.
    - **Exceptions**
        - Article 14 of the NCC - penal laws and public security and safety shall be obligatory upon all who live or sojourn in Philippine territory, subject to the principles of public international law and to treaty stipulations.
        - Bases Agreement of March 14, 1947
        - RP-US Visiting Forces Accord of February 10, 1998
        - Republic Act No. 75 - law of preferential application in favor of diplomatic representatives and their domestic servants.
2. **Territorial**
    - Crimes committed under Philippine territories are punished.
    - Exceptions (RPC shall be enforced outside the PH jurisdiction)
        - Offense is committed on a Philippine ship or airship
        - Currency counterfeit
        - Acts connected with the introduction into the Philippines of the obligations and securities
        - While being public officers who commit offense in the exercise of their functions
        - Any of the crimes against national security and the law of nations (RPC, Title 1, Book 2)

3. **Prospective**
    - A penal law cannot make an act punishable in a manner in which it was not punishable when committed.
    - Exceptions
        - Retroactive effect can be given when a new statute gives more lenient conditions to the accused, unless
            1. expressly made inapplicable to pending actions,
            2. Offender is a habitual criminal

Jurisdiction of Civil Courts

- Not affected by the military character of the accused.
    - U.S. vs. Sweet
- Civil courts have concurrent jurisdiction with general courts martial over soldiers of the AFP.
    - People vs. Livara
- *In times of war,* civil courts still have concurrent jurisdiction with the military court provided that in the place of the commission of the crimes no hostilities are in progress and civil courts are functioning.
    - Valdez vs. Lucero
- RPC or other penal law is not applicable when the military court takes cognizance of the case.

Jurisdiction of Military Courts

- **Section 1 of Republic Act No. 7055**
    - Members of the military who commit crimes must be tried by the proper civil court, except when the offense is **service-connected**, in which case shall be tried by the proper civil courts.
- Articles of War
    - Article 63 - Disrespect toward the President
    - Article 64 - Disrespect toward superior court
    - Article 67 - Conduct Unbecoming of an Officer and a Gentleman.
    - Article 97 - General Article.

Persons exempt by virtue of the public international law (II Hyde, International Law)

1. Sovereigns and other chiefs of state
2. Ambassadors, ministers plenipotentiary, ministers resident, and charge d'affaires.

Different effects of penal law

- If the penalty in the repeal is lighter, it shall be applied to the case except if the accused is a habitual criminal.
- If the penalty in the repeal is heavier, the law in force when the offense was committed shall be applied.
- If the new law totally repeals the old law, the crime is obliterated.
    - People v. Tamayo
        - While the case was pending, the ordinance violated was repealed.
        - The accused was acquitted.
- If the new law simply reenacts the old law, criminal liability is not destroyed.
    - US v. Cuna
        - Accused was charged with selling opium

        - While the case was pending, a new law against opium was passed which still included the act done by the accused.
        - The new law does not take away the criminal liability of the accused.
- If both old law and new law punish the same offense, the offender can be tried in the law which is more favorable to him – provided that the old law was still in place when he committed the offense.
- If the new law fails to penalize an act (punishable under the old law), it is no longer punishable.
    - Cessante ratione legis cessat ipsa lex
        - The reason for the law ceasing, the law itself also ceases.
    - People v. Sindiong and Pastor
        - Accused was prosecuted for neglecting to make a return of the sales of newspapers and magazines within time prescribed as stated in law.
        - While the case was pending, a new law was passed wherein the act of the accused was no longer included as punishable.
        - The accused were acquitted.
- If someone is mistakenly accused and convicted under a repealed law, he may be tried again under the new law as long as such an offense still exists in the law.
- Self-repealing laws (laws with expiry dates) are self-executing.

Construction of Penal Laws

- Penal laws are strictly construed against the government and liberally in favor of the accused.
    - May be invoked only where the law is ambiguous and there is doubt as to its interpretation.
- The Spanish text is controlling because it was approved by the Philippine legislature in its Spanish text.
    - People vs. Garcia
        - CA No. 301 penalizes any person who, without being a duly authorized agent of the Philippine Charity Sweepstakes, sold tickets of said corporation.
        - The tickets sold were different from the tickets issued by said corporation, hence, the accused must be acquitted.
    - People vs Mangulabnan
        - Respondent fired his gun at the ceiling during a robbery, killing the owner of the house.
        - Respondent is accused of robbery with homicide because the Spanish text says that homicide can take place even by mere accident (contrary to the English text saying that killing should be intentional for it to be considered homicide).

The Revised Penal Code (Act No. 3815, as amended)

History

- July 14, 1887 - the old Penal Code took effect .
- October 18, 1927 - a committee was created of the DOJ to revise the Penal Code and to include in the draft the other penal laws related to it.
    - Anacleto Diaz (chairman), Quintin Paredes, Guillermo Guevara, Alex Reyes, and Mariano H. de Joya.
- December 8, 1930 - the Revised Penal Code was approved.
- December 31, 1931 - the last day of effectiveness of the old Penal Code.
- January 1, 1932 - the Revised Penal Code took effect.
    - Felonies and misdemeanors committed prior to January 1, 1932, were punished in accordance with the Code or Acts in force at the time of their commission (Art. 366 of the RPC)

Content

- **Book One**
    - Basic principles affecting criminal liability (Arts. 1-20)
    - Provisions on penalties including criminal and civil liability (Arts. 21-113).
- **Book Two**
    - Definition, punishment, and classification of felonies (Arts. 114-365).

The Colonial Roots of Criminal Procedure in the Philippines

Introduction

- 1565 - Spanish colonial government was established.
- Native inhabitants were permitted to continue with their indigenous customs.
- Americans found that the Spanish failed to introduce laws of procedure to the country.
    - Within 2 years of the American arrival, General Orders No. 58 were issued.
    - The code of criminal procedure the American colonials introduced in 1900, remains virtually unchanged in 1997 and governs present-day criminal procedure in the Philippines.
- Ilustrados
    - Filipino elite
    - Aid was sought by the Americans to legitimize the latter’s rule.
- The colonial regime never formally extended civil rights to the inhabitants of the Islands.
    - No right to a trial by jury
    - Americans feared that giving Filipinos a determinative role in the judicial system would pose a threat to their authority.
    - Filipinos did not possess the intellectual capacity or cultural sophistication to judge their peers.
- White man’s burden
    - Duty to civilize but not associate with the natives.
- Dual legal structure
    - One set of laws for foreigners and one for the native inhabitants.

The Spanish Era

- Catholic missionaries - hoped to convert the Filipinos
- Colonial administrators - sought economic gain
- Inseparable union of the Church and the State
    - Shaped the policies of colonial administration

Roman Law in the Philippines

- Law of the Indies
- In hopes of averting native resistance, the colonial government permitted Filipinos to retain their "pagan" laws as long as they did not blatantly conflict with Spanish traditions, a practice which the Americans continued in their years of rule.
- The Spanish version of the Roman law replaced any indigenous regulations.
- For legal matters not covered in the Law of the Indies, the authorities turned to the Code of Castile.

Spanish Court in the Philippines

- Gobernadorcillio
    - a Filipino; who could often mediate and resolve conflicts on the local level without resorting to more formal proceedings, had jurisdiction over civil cases and petty criminal disputes.
- Spanish Alcaldes Mayores
    - Next rung of bureaucracy
    - Presided over all initial criminal cases and civil suits involving substantial sums.
    - Their decision could in turn be appealed to:
- Audiencia Territorial de Manila (Audiencia)
    - Formed in 1584
    - Highest court in the Philippines for most of the period of the Spanish rule.
    - One CJ, two presidents of chambers (criminal and civil, respectively), eight associate justices for vacancies, and an attorney-general and other officials.
    - Reviewed all criminal cases
    - Power to overrule any lower court decisions
    - Governor-General presides over the Audiencia and has the final say in all criminal and civil cases.
- "By far the most valuable monument of legislation, not merely of Spain but of Europe, since the publication of the Roman Code."

Criminal Law and Procedure

- Penal code of 1887
    - No guidance for trial procedures nor does it offer the defendant any legal rights.
- The Spanish permitted a judge to render all decisions in court.
- The accusing party files a complaint to the lower court, and *sumario* begins. Following the sumario, trial begins.
- If the accused remains silent, the court interprets this as the accused being guilty and he is charged formally.
- Burden of proof and production of the evidence on the defendant.
- State and elite interests over individual rights.

Spanish Catholic Church in the Philippines

- Archbishop of Manila
    - Had the right to sit on the administrative council, and church officials often performed political functions.
- Clergy

    - Link between the Filipino people and the colonial administration
- The ilustrados sought the separation of the church and state

The End of the Spanish Era

- In opposition to the exploitation of the natives, the Filipinos followed the ilustrados who initiated a nationalist movement.
- Asociacion Hispano-Filipina works on
    - Reforms in the judiciary and penitentiary
    - Agriculture development
    - Road construction
    - Govt administration reform
    - Compulsory teaching of Spanish in schools
    - Establishment of secondary schools
- Juez de paz (justice of the peace)
    - Resolved minor disputes, often concerning property or inheritance rights.
- Inefficient Spanish judicial system
    - Individual could object to the judge anytime
    - Audiencia continued to review case that ended in acquittal
    - Spanish justices often listen to the testimony of one witness for an hour and adjourn for a week or more before hearing from the next witness.

The American Era

- Treaty of Paris
    - December 1898
    - “Benevolent assimilation” for the Philippines
- D.K. Fieldhouse on colonialism
    - Exploitation by a foreign society and its agents who occupied the dependency to serve their own interests.
    - Trusteeship - the empire is morally responsible to the welfare of the dependencies so the policies must be within their interest.
- Ilustrados cooperated with Americans
- US Law or Common Law
    - No jury system was introduced
    - Focused on separation of church and state

Military Rule

- Promote US interests and provide security for Americans in the Philippines
- Filipino males could vote if:
    - They could speak and read English or Spanish
    - Owned property valued at more than 500PHP
    - Had held a government position during the Spanish colonial rule
- Filipinos elected by popular vote

Initial Collaboration

- The Americans relied on the ilustrado lawyers in particular.
- Highest court of appeals was the US Supreme Court instead of the Spanish Council of the Indies

General Orders No. 58

- Code of Criminal Procedure for the Philippines
- May 15, 1900 - all existing laws should remain valid unless specifically repealed or modified
- On submitting documents
    - Full and true name of the defendants

    - Designation of the offense
    - The acts complained of in plain language
    - Statement of the offense committed in the court's jurisdiction
    - Names of the persons involved in the offense
- Court's jurisdiction determined by:
    - Geographical limits
    - Type of action – civil or criminal
- Defendant is presumed innocent until proven guilty, increasing the burden of the prosecution.
- Offenders can be released on bail if not charged with a capital offense.
- Providing rights to the defendant at trial and allowing trials to be open to the public.
- **Demurer -** when he or she admits all the allegations of the complaint but asserts that such allegations are insufficient to form a cause of action rendering the plaintiff's case invalid.
- **Plea -** direct response to the charge.
    - Guilty - may be withdrawn and substituted with a not guilty plea.
    - Not guilty
    - Former judgment of conviction or acquittal
    - Once in jeopardy, which may be pleaded with or without a plea of guilty.

Right to a Jury Trial (Schurman Commission Era)

- American officials and ilustrados shared the belief that the common Filipinos were incapable of self-government.
    - Permitted officials such as William Howard Taft to justify the colonial policies, including depriving Filipinos of the right to a trial by jury.
- American writings about the backwardness of Asian societies served to justify their decision not to introduce jury trials.
- The anti-imperialist movement arose in the US.
    - Anti-imperialists argued that Filipinos were competent to self-govern.
    - Extension of right to trial by jury was championed for the Filipinos.
- The Filipinos never had experienced trials with juries and, therefore, the Americans were not depriving them of this right.

The Philippine (Taft) Commission and the Philippine Assembly (1901-1907)

- Spooner Amendment - ended the military rule period
- Organic Act of 1902
    - Military to civilian rule
- Supreme Court - most Filipinized branch of the central government
- The American colonial administration permitted municipal courts to resolve most civil cases, but criminal cases had to be argued in front of American justices.
- Any laws inconsistent with American beliefs had already been excised from the Philippine law codes.

Jones Law

- Even though there were more Filipinos in the legislative and judicial positions, the American governor-general retained veto power and the right to appoint all Cabinet officials.
- Most decision-making power is in the hands of the Americans.

Commonwealth and Independence

- Tydings-McDuffie Act - provided independence from US control in 1946
- Even though the Supreme Court issued new rules of criminal procedure, the Court did not stray far from the substance of General Order No. 58

Early Years of Marcos and the Martial Law

- 1972 - declaration of Martial law; no change occurred to the Code of Criminal Procedure
- 1981 - martial law was lifted
- 1985 - Supreme Court issued its most recent version of the Code of Criminal Procedure
    - Luna v Plaza case
    - Offended filed a complaint → police investigation → if sufficient grounds, suspect is taken into custody but can be released on bail *
- Rule 115
    - Innocent until the contrary is proven
    - Be informed of the nature and cause of accusation
    - Be present and defend in person and by counsel at every stage of the proceedings
    - Testify as a witness in his own behalf
    - Be exempt from being compelled as a witness in his own behalf
    - Confront and cross-examine witnesses against him
    - Have compulsory process issued to secure the attendance of the witness and production of other evidence on his behalf
    - Speedy, impartial, public trial
    - Appeal in all cases allowed and in the manner prescribed by law
- Most explanations of preference for informal means of dispute-processing in ex-colonial third world states stress cultural and social characteristics incompatible with the norms underlying legal institutions introduced by Western imperial powers.

Conclusion

- Americans initiated changes in civil marriage
- Enacted a new criminal code of procedure
- As late 1910, the existing Spanish law was still prominent in the American colonial judicial system
- Ruby Paredes: Americans had the power, but the ilustrado had the knowledge.
- U of Wisconsin stated: our denial of the right of trial by jury has been criticized but this measure seems well justified in view of the low educational level of the people and their centuries of different experience in trial by judge rather than jury.

Restorative Justice

Why is it called Restorative Justice?

- Concerned with restoration of the victim, the offender, and the damage caused by the crime to the community.
- More concerned with the creation of positive relationships than traditional justice processes.
- Used as a synonym for reintegrative justice.
- Principles :
    - Personal involvement of those mainly concerned
    - Crime problems seen in their social context
    - Forward-looking problem-solving orientation
    - Flexibility of practice
- Parties involved collectively resolve the aftermath of the offence and its implications for the future.

What is it for?

- To attend fully to the victims' needs
- To prevent re-offending by reintegrating offenders into the community
- To enable offenders to assume active responsibility for their actions
- To recreate a working community that supports the rehabilitation of offenders and victims and is active in preventing crime
- To provide a means of avoiding escalation of legal justice and the associated costs and delays.

Current criminal justice system is not centrally concerned with victims and does not address most of their needs.

Restorative justice is based on the ff. Assumptions

- Crime has its origins in social conditions and relationships in the community
- Crime-prevention is dependent on communities taking some responsibility for remedying those conditions that cause crime
- Aftermath of the crime cannot be fully resolved without the parties facilitating their personal involvement
- Justice measures must be flexible enough to respond to the exigencies, needs, and potential for action in each case
- Partnership and common objectives among justice agencies, and between them and the community, are essential to optimal effectiveness and efficiency
- Justice consists of a balanced approach in which a single objective is not allowed to dominate the others.

How did the idea arise?

- Basic justification is grounded in practical experience in terms of what worked on:
    - Offenders
    - Victims
    - Public acceptability
- Represents the accretion of actual experience in working successfully with particular crime problems.
- As practice is refined, so is the concept of Restorative Justice.

Relationship of Restorative Justice to Legal Justice

- The boundary between negotiatory practices and the workings of the criminal justice system.
- The problem of both systems co-existing cannot be avoided.

    - RJ can and should be integrated as far as possible with LJ as a complementary process that improves the quality, effectiveness, and efficiency of justice as a whole.

Limitations

- If one party is not willing to participate, the range of options is reduced. If neither party is willing, there is no option but to let formal justice take its usual course.
- Traditional justice forms will remain to deal with cases where Restorative Justice is inapplicable because of the circumstances, or fails through lack of cooperation or through failure to come to a mutually acceptable resolution.
- More accessible and attractive to individuals because they provide them with flexibility for manoeuvre and are more easily understood than legal procedures. They also offer benefits that the formal system offers less certainly or not at all.
- Available level of resources and skills.
    - Communities are not as integrated as they once were.
- Existence of social injustice and inequality in and between communities.
- The degree to which effective communities exist depends largely on other social policies apart from criminal justice.

Organizations promoting Restorative Justice

- Restorative Justice Consortium - forum of national organizations
    - To influence policy-makers so they take full account of the need for RJ
    - To disseminate info about RJ
    - To raise awareness of the benefits of RJ
    - To recommend standards for RJ projects
    - To share information and experience between members of the Consortium
- Standards in Restorative Justice
- Mediation UK
    - national voluntary umbrella for mediation initiatives of all kinds and comprises practicing mediators, mediation bodies, and individuals or organizations with an interest in mediation.
    - No one mode of operation
    - Provides training, accreditation, advice, and directory of mediation services.
- Society of Friends
- National Council for Social Concern
    - independent charitable foundation which has a base in, and strong links with, the Church of England.
    - Its work is both educational and facilitative.
    - Focus on crime issues, addiction to drinks, drugs, and gambling
- Victim Support
    - not normally thought of as Restorative Justice body
    - a partisan on behalf of victims and its constitution prevents it from taking a view on the treatment of offenders.
- National Association for the Care and Resettlement of Offenders (NACRO)
    - its focal concerns: welfare and rehabilitation of offenders and the welfare of their families
    - One of the main promoters of community-based supports for rehab

Examples of Restorative Justice Practice

- **Victim-offender**
    - Organized to give offenders a chance to take active steps to make voluntary reparations to their victims
    - Reparation:
        - Financial payments
        - Work for victim
        - Work for a community cause selected by victim
        - Specific undertakings
        - Mixture
- **Victim-community**
- **Victim, offender, and community**
    - Conferencing
        - Shaming was only positive in its effects if it occurred within and by a community that the shamed person respected and was attached to.
- **Justice agencies and victims**
- **Justice agencies and offenders**
- **Justice agencies and communities**

ARTICLE 1. Time When Act Takes Effect. — This Code shall take effect on the first day of January, nineteen hundred and thirty-two.

The Revised Penal Code is based on the principles of the **classical theory** while having positivistic tendencies.

Theories in Classical Law

- ***Classical Theory***
  - The basis of criminal liability is **human free will**.
  - Purpose of the penalty is **retribution.**
  - Man is a moral creature with an absolute free will to choose between good and evil, thereby placing more stress upon the effect or result of the act than the person who committed the act.
  - It has endeavored to establish a mechanical and direct proportion between crime and penalty.
  - There is little regard to the human element.
- ***Positivist Theory***
  - Man is subdued occasionally by a phenomenon which constrains him to do wrong.
  - Crime cannot be treated and checked by the application of law and jurisprudence; but rather through psychiatrists and social scientists.

ARTICLE 2. Application of Its Provisions. — Except as provided in the treaties and laws of preferential application, the provisions of this Code shall be enforced not only within the Philippine Archipelago, including its atmosphere, its interior waters and maritime zone, but also outside of its jurisdiction, against those who:

1. Should commit an offense while on a Philippine ship or airship;
2. Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;
3. Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the preceding number;
4. While being public officers or employees, should commit an offense in the exercise of their functions; or
5. Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code.

Important Phrases

- Its atmosphere
  - Penal laws extend to all their air space which covers the territory, subject to the right of way or easement in favor of foreign aircrafts.
- Interior Waters
  - Bodies of water within the **3 mile limit**
- Maritime Zone

- 3 miles from the coastline starting from the low water mark
- 12 miles measured in a straight line from headland to headland
- Established through international treaties

Human Security Act of 2007 (RA 9372)

- Has provisions providing for extra-territorial application subject to existing treaties and laws of preferential application.
- The Act shall apply to:
  - Persons committing a crime within the Philippine territory
  - Persons involved in a crime within the Philippine territory despite being physically outside of the territory
  - Persons who commit an offense while on a Philippine ship or airship
  - Persons who commit crimes within our embassies, consulates, and other diplomatic premises occupied by the Philippine government in an official capacity
  - Any person committing a hate crime against Filipinos.
  - Any person committing a crime directly against thePhilippine government.

Paragraph 1. **The RPC with regards to offenses on a Philippine ship or airship.**

- Does not apply when the ship or airship is within foreign territory.
- Does not apply if ship or airship is not properly registered with the Philippine Bureau of Customs even if owner is Filipino.
- Does not apply if the crime is committed in high seas (i.e. areas of the seas not belonging to any one country), BUT the vessel is not registered or licensed in the Philippines.

The RPC and foreign ships or airships

- Continuing offense
- When a foreign merchant vessel enters the 3-mile limit, the ship's officers and crew are subject to the jurisdiction of our courts.
- With regards foreign ships, the Philippines follows the **English Rule**:
  - French Rule – crimes are not triable unless they affect the peace and security of the territory and safety of the state.
  - English Rule – crimes are triable unless they only involve matters within the vessel.
- Absolutely no jurisdiction over foreign war ships.

Crimes not involving a breach of public order committed on board a foreign merchant vessel in transit are not triable by our courts

- Carrying opium on a ship which is in transit is not triable in our courts. BUT, when the opium is landed, it is within our

jurisdiction because such an act is an open violation of the laws of the Philippines (US v. Look Chaw).

- Smoking opium on a ship while it is in transit is triable because it affects our territory (atmosphere) (People v. Wong Cheng).
- A person who is carrying opium and who is on board a foreign merchant ship may be liable for illegal importation of opium (US v. Ah Sing).

Paragraph 2. **Should forge or counterfeit any coin or currency of the philippine islands, or obligations and securities issued by the government of the Philippine Islands**

and

Paragraph 3. **Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the preceding number.**

Why are people who introduce forged or counterfeit obligations and securities being punished?

- They are being punished because such acts have an effect on our economy
- Thus, any person who makes counterfeits in a foreign country may be prosecuted before our courts for violation of Article 163 (coins or currency counterfeit) OR Article 166 (forging securities or obligations) of the RPC.

Paragraph 4. **While being public officers or employees should commit an offense in the exercise of their functions.**

Does the RPC apply to public servants and employees who commit their offenses abroad?

- Yes as long as it was during the exercise of their functions.

Paragraph 5. **Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code.**

Examples of offenses against national security and the law of nations

- Treason, conspiracy and proposal to commit treason, espionage, inciting to war and giving motives for reprisals, violation of neutrality, correspondence with hostile country, flight to enemy's territory, piracy and mutiny on the high seas.

IMPORTANT: Crimes against National Security and Law of Nations - defined in the RPC (Title 1 of Book II)

Article 2 Cases

U.S. v. Bull

- *Facts*: H.N. Bull was in the business of transporting cattle from Formosa to the ports of Manila via the Norwegian vessel, *Standard*. Numerous cattle had been injured due to inadequate structures in the vessel, and some have died as a result of Bull's failure to provide suitable security for the animals, which constitutes a violation of Act No. 55
- *Issue:* WON the PH courts have jurisdiction over an offense committed aboard a foreign vessel within PH territorial waters?
- *Ruling:* PH courts have jurisdiction. The continuing offense on board a foreign vessel is triable in the Philippines, when the

forbidden conditions existed during the time the ship was within territorial waters, regardless of the fact that the same conditions existed in Formosa and the high seas.

Del Socorro v. Van Wilsem

- *Facts*: Norma Del Socorro seeks legal action against her Dutch ex-husband, Ernst Van Wilsem, for failing to provide financial support for their child. She filed a complaint-affidavit with the Provincial Prosecutor of Cebu City, leading to the filing of an information for violation of Republic Act No. 9262.
- *Issue*: WON a foreign national has an obligation to support his minor child under Philippine law?
- *Ruling*: PH laws are only binding upon Filipino citizens. However, in this case Van Wilsem failed to prove that he was not obligated to provide support to his child according to the national law of the Netherlands. Thus, the doctrine of processual presumption governed and he can be held criminally liable under RA No. 9262.

People v. Wong Cheng

- *Facts*: Wong Cheng is accused of illegally smoking opium aboard a foreign merchant vessel *Changsa* of English nationality. The vessel, at the time of commission, was anchored in Manila Bay two and a half miles from the shores of the city.
- *Issue*: WON PH courts have jurisdiction over a crime committed on foreign merchant vessels anchored within PH territorial waters?
- *Ruling*: PH courts have jurisdiction, following the English rule which follows the territoriality principle, permitting local courts to try crimes committed on foreign vessels within their waters. The mere possession of opium is not punishable under PH laws, but the act of smoking opium is, since it is a disturbance of public order. Thus, it is triable by our local courts.

People v. Look Chow

- *Facts*: Look Chow was found in possession of multiple sacks containing a total of 137 cans of opium. He confessed that 30 of which were illegally sold, aboard the steamship *Erroll*. The opium had been seized when *Erroll* made a stopover in the port of Cebu before going to Mexico and Puerto Vera Cruz.
- *Issue*: WON the PH courts have jurisdiction over possession of an article of prohibited use aboard a foreign merchant vessel in transit in Philippine territory?
- *Ruling*: PH courts have jurisdiction. The landing, using, and selling of opium on Philippine soil is an open violation of the laws of the Philippines.

U.S. v. Ah Sing

- *Facts*: Ah Sing, a fireman employed on steamship *Shun Chang, brought* eight cans of opium into the vessel before it left Saigon to go directly to Cebu. The defendant admitted to owning the prohibited drugs but did not admit to having intentions about importing the said drugs.
- *Issue*: WON the crime of illegal importation of opium in the Philippine Islands has been proven in this case?
- *Ruling*: Court held that it is illogical to assume that the defendant was merely carrying the opium for personal use or without the intention of importing it into the Philippine Islands. By merely bringing the goods into the port, the importation is complete even before the entry into the Custom House.

People v. Lol-lo & Saraw

- *Facts*: A boat of Dutch possession was leaving for Peta and was carrying eleven men, women, and children (all Dutch subjects). It was surrounded by six *vintas* manned by twenty-four Moros when it was passing through the Dutch East Indies. The moros took all the cargo from said boat, attacked a few men, and violated two women. Thereafter, Lol-lo and Saraw, two of the moros, returned to their home, Tawi-Tawi, and were arrested for the crime of piracy.
- *Issue*: WON the PH courts have jurisdiction over the crime of piracy committed outside its territorial waters?
- *Ruling*: PH courts have jurisdiction. Jurisdiction over piracy is not limited by territorial boundaries, even if committed within foreign territorial waters because piracy is a crime against all mankind and can be punished by any competent tribunal where the offender is found.

TITLE I: FELONIES AND CIRCUMSTANCES WHICH AFFECT CRIMINAL LIABILITY

Chapter 1. Felonies

ARTICLE 3. Definition. — Acts and omissions punishable by law are felonies (delitos).

Felonies are committed not only by means of deceit (dolo) but also by means of fault (culpa).

There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

Elements of a Crime

1. An Act or Omission of Act.
    - Act - any bodily movement tending to produce some effect in the eternal world.
        - No need for it to actually be produced. Possibility of its production suffices.
        - Must be defined as a felony in the RPC
        - Overt act - an act which has direct connection with the felony to be committed.

- Omission - failure to perform a positive duty that one is bound to do (there must be a law requiring the doing or performance of an act)

2. Said Act or Omission of Act is punishable by law, i.e., the RPC
   - *Nullum crimen, nulla poena sine lege* - there is no crime when there is no law punishing it.
3. Act is performed with malicious intent (dolo) or fault (culpa)
   - Intentional felonies
     - Act is performed with deliberate intent (malice)
   - Culpable felonies
     - The injury caused is unintentional, it being simply the incident of another act performed without malice.
     - Act resulting from imprudence, negligence, lack of foresight, or lack of skill
     - Reason for punishing acts of negligence:
       1. Man must use his common sense and exercise due reflection in all his actions

Types of Fault:

1. **Imprudence** - Deficiency of Action
   a. Ex: Failing to observe the speed limit while driving which led to a homicide.
2. **Negligence** - Deficiency of Perception or Attention
   a. Ex: Failing to see the one-way-sign while entering the one-way street in the wrong direction.

Requisites of Dolo or Malice

1. Freedom
   - Without freedom, a person is no longer a human being, but a tool
   - There is no freedom if the offender is under the compulsion of an irresistible force or uncontrollable fear
2. Intelligence
   - Intelligence is necessary to determine the morality of human acts. Without this, no crime can exist.
3. Intention to do Harm
   - This is presumed from the proof of the commission of an unlawful act
   - **IMPORTANT:** Sir Barry mentioned that if there's one thing we should learn from the class, there should be INTENT to be considered a crime

Rule Regarding Presumption of Criminal Intent

General Rule (GR): Criminal Intent is presumed and the defendant is tasked to rebut otherwise.

Exception (X): If the accompanying facts are evident that there was no criminal intent

Requisites of Mistake of Fact as a Defense against Crim. Liab.

1. The act was lawful under the facts the accused thought to be true.
2. The intention must be lawful
3. The mistake must be without fault or carelessness

Mistake of fact - misapprehension of fact on the part of the person who injures another. He is **not** criminally liable because he did not act with criminal intent

Instances when Mistake of Fact is not a Defense

1. One mistakenly killed a man with the intention to kill another (Violation of # 1&2)

2. A dog died because its owner accidentally left it in his car because he thought he already let it out. (Violation of #3)

Relevant Legal Maxims

1. *Actus non facit reum nisi mens sit rea.*
   - The act itself does not make a man guilty unless his intention were so.
2. *Actus me invito factus non est meus actus.*
   - An act done by me against my will is not my act.

Motive (It is different from Intent but when is it needed?)

GR: Not Required

X:

1. When the Identity of the Assailant is in doubt or dispute.
2. Antagonistic Theories
3. No Eyewitnesses
4. When there is only Circumstantial Evidence

Crimes punishable by special laws

- Includes crimes punishable by municipal or city ordinances
- Dolo is not required
  - The act alone, irrespective of its motives, constitutes the offense

***Mala in Se* and *Mala Prohibita* Distinguished**

- Acts in *mala in se* must have criminal intent, but those in *mala prohibita* do not (it is sufficient if the prohibited act was intentionally done)
- *Mala in se* - wrongful from its nature
  - Punishable by RPC
- *Mala prohibita* - wrongful because it is prohibited by a statute
  - Found in special laws
  - Refers generally to acts made criminal by special laws

Motive

- Different from intent
  - Intent - purpose to use a particular means to effect such a result
  - Motive - moving power which impels one to action for a definite result
- Not an essential element of a crime; need not be proven for purposes of conviction
  - Even strong motive cannot take the place of proof beyond reasonable doubt

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Article 3 Cases

People v. Ah Chong

- *Facts:* Ah Chong, a cook, mistakenly killed his roommate with a knife in the middle of the night because he thought he was a robber. He did not have any means to know that the person was his roommate prior to his roommate's death because it was dark outside and the roommate failed to identify himself even though Ah Chong asked multiple times. Furthermore, it was reasonable to believe that the person may be a robber because the area where their quarters are located had many instances of robbery.
- *Issue*: WON Ah Chong can claim mistake of fact as a defense from criminal liability?
- *Ruling*: Ah Chong was acquitted because he has all the requisites or claiming mistake of fact as a defense: (1)his act was lawful under the facts the accused thought to be true, (2)

his intention was lawful, and (3) the mistake committed was without fault or carelessness.

People v. Oanis

- *Facts*: Police Officers Oanis and Galanta were tasked to capture dead or alive a convict sentenced to life imprisonment. After arriving at the place they thought the convict was, they immediately fired their bullets on the suspect. It turned out that the suspect was not the convict.
- *Issue*: WON the police officers can claim mistake of fact as a defense?
- *Ruling*: They cannot claim mistake of fact as a defense because their action was with fault or carelessness. They could have verified the identity of the sleeping suspect instead of immediately firing at him.

Magsumbol v. People

- *Facts*: Magsumbol et. al were tasked to cut and gather coconut trees. They obtained the necessary permits to cut the trees before cutting it. It turns out they cut the wrong trees.
- *Issue*: WON Magsumbol et. al can claim mistake of fact as a defense from criminal liability?
- *Ruling*: They can claim mistake of fact as a defense because they have all the requisites for it. First, it is understandable that they committed the mistake because the boundary of the properties was not properly marked. Second, they did not have any malicious intent as shown that they obtained the necessary permission to cut the trees and that they offered to compensate the offended party.

People v. Gervero

- *Facts*: Gervero et. al, were members of the Citizen Armed Forces, tasked to conduct tactical patrol and combat operations against members of the NPA. They open fired at the unarmed victims at an area illuminated by moonlight and a light bulb. They claimed that they thought they were members of the NPA.
- *Issue*: WON Gervero et. al can claim mistake of fact as a defense from criminal liability?
- *Ruling*: They cannot claim mistake of fact as a defense because the evidence showed that they knew the victims prior to the event and that they can reasonably identify the victims at the time of the shooting.

ARTICLE 4. Criminal Liability. — Criminal liability shall be incurred:

1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

Rationale

- *El que es causa de la causa es causa del mal causado* (He who is the cause of the cause is the cause of the evil caused) - Legal Maxim

***Paragraph 1.* By any person committing a felony (delito) although the wrongful act done be different from that which he intended.**

Requisites of Art. 4 Para. 1

1. Intentional felony has been committed
2. Wrong done committed to the aggrieved party should be the direct and natural and logical consequence of the felony committed by the offender.

Three Variants of the Art 4. Para. 1

1. Mistake in Identity - Error in personae
    - Mistake in identifying the target
2. There is mistake in the blow - aberratio ictus
    - Mistake in giving the targeted person the crime but you did not mistake the identity of the person.
3. The injurious result is greater than that intended
    - You pushed someone but accidentally pushed him in front of a moving car.

Definition of Proximate Cause [MEMORIZE THIS]

- A cause where the natural and continuous sequence, unbroken by any intervention, produced the injury; and without it, the injury would never have happened.
- Exceptions (felony committed is not proximate cause when)
    - There is an active force that intervened between the felony committed and the resulting injury, and the active force is a distinct act or fact absolutely foreign from the felonious act of the accused.
    - The resulting injury is due to the intentional act of the victim

Exemplification of Direct and Natural Logical Consequence a.k.a Proximate Cause

1. The accused chased the deceased with a knife in which the deceased trip and bang his head on the ground and died.
2. A man stabbed his friend with a knife but then his friend contracted tetanus from it and died.

***Paragraph 2*. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.**

Definition of an Impossible Crime Art.4 Para 2.

- An impossible crime is an act that would be a felony if it were not for the inherent impossibility of the offense or the inadequate or ineffectual means used.

Ratio for Punishing Impossible Crimes

- It is indicative or Criminal Tendency / The Person is subjectively Criminal
- If a person has shown criminal tendencies, we must protect innocent people from that person.

Requisites of Impossible Crime

1. An act performed would be an **offense against persons or property.**
2. That the act was done with **evil intent.**
3. That its **accomplishment is inherently impossible**, or that the means employed is either inadequate or ineffectual.
4. That the act performed should **not constitute a violation of another provision of the R.P.C.**

Types of Impossible Crime

1. **Inherently Impossible**
    - Legal Impossibility - the law states that an act is not criminal per se.
        - Ex:
            1. Killing a dead person
            2. Stealing a watch that turns out to be yours
    - Physical Impossibility - the crime could not be committed due to external forces
        - Ex: Killing a dead person.
2. **Inadequate Means** - Correct method but lacking in severity to commit a crime.
    - Poisoning someone with cyanide but dosage used was too small to kill.
3. **Ineffectual Means** - Incorrect method; Might coincide with Legal Impossibility.
    - Poisoning someone with substance x with where one thought it was cyanide but it was actually sugar.

Article 4 Cases

Result is different from what was intended

People v. Iligan

- *Facts*: Iligan hacked the victim on a highway which resulted in the victim being unconscious. The victim later died on the same highway because of a vehicular accident.
- *Issue*: WON Iligan is guilty for murder even though the victim died from a vehicular accident?
- *Ruling*: He is guilty for murder because the act of rendering the victim unconscious on a highway is the proximate cause for the victim getting into a vehicular accident.

People v. Mananquil

- *Facts*: Valentina set her husband on fire. The husband later died because of pneumonia.
- *Issue*: WON Valentina is guilty of parricide?

- *Ruling*: She is guilty of parricide because the act of setting her husband on fire was the proximate cause of his husband's pneumonia. This is because the husband would not contract pneumonia at the hospital if the wife did not set him on fire.

U.S. v. Brobst

- *Facts*: Mann punched his ex-employee to remove him from the premises which later resulted in the ex-employee's death. Mann said that he did not intend to kill him but merely to vacate him from the premises.
- *Issue*: WON the defendants are guilty of homicide?
- *Ruling*: They are guilty of homicide because they still intend to harm the victim even though they did not intend to kill him.

Garcia v. People

- *Facts*: Garcia assaulted Chy. Chy then later escaped, preventing Garcia from further assaulting him. However, Chy later died from a heart attack.
- *Issue*: WON Garcia is guilty of homicide?
- *Ruling*: He is guilty of homicide. Although his assault did not directly caused Chy's death, it triggered Chy's weak heart which ultimately resulted to Chy's death.

Impossible crime

People v. Balmores

- *Facts*: Balmores tried to claim an obviously fake winning lotto ticket from PCSO.
- *Issue*: WON he is guilty of an impossible crime?
- *Ruling*: The Court held that he is guilty of an actual crime (falsification of security) although prof. Barri disagrees. Maybe the lesson from this case is that no matter how incompetent one is, stealing from the government (or in general?) will incur one of criminal liability for the actual crime and not for an impossible crime.

Intod v. Court of Appeals

- *Facts*: Intod et. al are hitmen tasked to kill Palampangan. They went inside Palampangan's house and fired at his bedroom while the door was closed. It turns out that the bedroom was empty.
- *Issue*: WON Intod et. al are guilty of an impossible crime?
- *Ruling*: They are guilty of an impossible crime because they thought that they were killing Palampangan but their actions could never result in Palampangan's death because he was not there.

People v. Domasian

- *Facts*: Tan hired Domasian to kidnap Enrico. Enrico was then kidnapped by Domasian but the authorities later retrieved Enrico and sent him back to his parents. Enrico's parents then received a ransom letter from Tan.
- *Issue*: WON Tan is guilty of an impossible crime?
- *Ruling*: No, he is guilty of kidnapping, and not an impossible crime, because the kidnapping has already been consummated.

Jacinto v. People

- *Facts*: Jacinto stole a worthless check from his employer.
- *Issue*: WON Jacinto is guilty of an impossible crime?
- *Ruling*: She is guilty of an impossible crime because she cannot be held liable for stealing an object with no value.

ARTICLE 5. Duty of the Court in Connection with Acts Which Should Be Repressed but Which are Not Covered by the Law, and in Cases of Excessive Penalties. — Whenever a court has knowledge of any act which it may deem proper to repress and which is not punishable by law, it shall render the proper decision, and shall report to the Chief Executive, through the Department of Justice, the reasons which induce the court to believe that said act should be made the subject of penal legislation.

In the same way the court shall submit to the Chief Executive, through the Department of Justice, such statement as may be deemed proper, without suspending the execution of the sentence, when a strict enforcement of the provisions of this Code would result in the imposition of a clearly excessive penalty, taking into consideration the degree of malice and the injury caused by the offense.

FIRST PARAGRAPH: "In connection with acts which should be repressed but which are not covered by the law."

- The 1st paragraph considers a ***criminal trial*** wherein:
    1. The act committed does not appear to be punishable by any law;
    2. But the court deems it proper to repress such act;
    3. And the court must render the proper decision by ***dismissing*** the case and ***acquitting*** the accused;
    4. The judge must then make a report to the Chief Executive, through the Secretary of Justice, stating the reasons which induce them to believe that the said act should be made the subject of penal legislation.
    5. Basis of the 1st Paragraph: "Nullum crimen, nulla poena sine lege."
- There is no law when there is no crime punishing it. The Judiciary must not punish a crime wherein no law defines it, treats of their nature, and provides for their punishment.

SECOND PARAGRAPH: "In cases of excessive penalties"

- The 2nd paragraph requires that –
    1. The court after trial finds the accused guilty
    2. The penalty provided by law and which the court imposes for the crime appears to be excessive because
        a. The accused acted with ***lesser degree*** of malice, and/or;
        b. There is ***no injury*** or the injury cause is of ***lesser gravity***
    3. The Court should ***not suspend the execution of the sentence***
    4. The judge should submit the statement to the Chief Executive, through the Secretary of Justice, recommending Executive Clemency

Lesser Degree of Malice

- An inebriated husband kills his wife because the latter prevented him from whipping their negligent son. The maltreatment being the proximate cause of the wife's death. However, the Supreme Court applied Article 5 given that the husband had no intent to kill his wife and that the latter's weak constitution and lack of appropriate medical attendance hastened her death.

Injury caused is of lesser gravity

- A 4-year-old child was kidnapped and taken to a stranger's house. After initially denying the child's location, the captor eventually revealed it and was charged with kidnapping. However, since the child was found unharmed, well-dressed, and smiling, the Supreme Court suggested the President consider pardoning or commuting the sentence.

Total Absence of Injury

- The defendant, a chief of police, falsified several records to show that a person charged with qualified seduction was arrested and released on bond on September 13th, though this occurred seven days earlier. A justice of the peace aided in the falsification to cover up any delay in the preliminary investigation. There was no malice or injury involved.

When Executive Clemency is Recommended

1. When a wife kills her husband as a result of years of abuse, insult and tyranny, the former deserves executive clemency, if not a radical reduction of her life sentence.
2. When a convicted rapist has fully served his sentence, before the raising of the penalty of qualified rape to *reclusion perpetua* and made into a capital offense, executive clemency may be extended to him.

Penalties are not Excessive when intended to enforce a public policy.

1. The rampant lawlessness against property, person, and even the very security of the Government, ***directly traceable in large measure to promiscuous carrying and use of powerful weapons,*** justify imprisonment which in normal circumstances might appear excessive
2. With regard to the fine of P5000.00 imposed by the Court for selling a can of powdered Klim milk for P2.00 when the selling price for it was P1.8, it should be considered that Congress though it necessary to repress profiteering with a heavy fine so that ***dealers would not take advantage of the critical condition to make unusual profits.***

RESTRAINT & DUTY OF THE COURTS

- ***The courts are not concerned with the wisdom, efficacy or morality of laws.*** This is the domain of the Legislative.
- The function of the Judiciary is to interpret and apply the law, when the same is not contrary to the Constitution
- A judge of a lower court may state their opinion on the application of a doctrine, but must nonetheless apply the same without passion or hostility.
- ***DURA LEX SED LEX –*** The law may be harsh but it is still the law. The Courts are not a forum for acquiring sympathy. The remedy is elsewhere (executive clemency or amendments made by the legislature)

APPLICATION TOWARDS SPECIAL LAWS

- Although Article 5 expressly pertains to provisions of the Revised Penal Code, it has been applied to violations of special laws.
- The Courts are not precluded from giving the RPC suppletory application in accordance with Article 10 of the Code

ARTICLE 6. Consummated, Frustrated, and Attempted Felonies. — Consummated felonies, as well as those which are frustrated and attempted, are punishable.

A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance.

DEVELOPMENT OF CRIME

1. **Internal Acts -** Mere IDEAS in the mind of a person are NOT punishable even if, had they been carried out, they would constitute a crime.
    - Intention **AND** effect must concur
        - Mere Intention producing no effect is no more a crime than a mere effect without the intention is a crime
2. **External Acts**
    - **Preparatory Acts** – As a general rule, they are not punishable
        - Proposal and conspiracy to commit a felony are not punishable except when the law provides for their punishment in certain felonies
        - ***But Preparatory acts which are considered in themselves, by law, as independent crimes, are punishable.***
        - Ex. Possession of lockpicks under Article 304
        - Ex. Buying Poison, or carrying a weapon with which to kill the intended victim, carrying inflammable materials to the place where a house is to be burned
3. **Acts of Execution – Punishable under the RPC**
    - **THREE** Stages: **Attempted, Frustrated, Consummated**
    - In Attempted and Frustrated Felonies, the accused does not produce the felony he intends to commit but is liable all the same

ATTEMPTED FELONIES

ELEMENTS

1. **Commences the commission of the felony directly by overt acts;**
    - Offender commences the commission of the felony directly by overt acts. Only Offenders who ***personally*** execute the commission of the crime can be guilty of attempted felony by taking direct part.
    - **TWO REQUISITES***: (1) that there be* ***external acts****, (2) Such external acts* ***have direct connection*** *with the crime intended to be committed*

- An **OVERT ACT** is some ***physical activity or deed***, **indicating the intention to commit** a particular crime**, more than a mere planning** or preparation, which if carried to its complete termination following its natural course, without being frustrated by external obstacles nor by the voluntary desistance of the perpetrator, will **logically and necessarily ripen into a concrete offense**
    - **NOTE: Buying Poison, raising a bolo knife *as if* to strike, or drawing a pistol are NOT Overt Acts**
    - **NOTE: Some Overt acts need not be physical activities, such as the crime of corruption of public officers**

2. **Does NOT perform all the acts of execution**
    - Offender has performed all the acts of execution – ***nothing more is left to be done*** – the stage of execution is that of a frustrated felony, if the felony is not produced, and consummated if it has.
3. **By reason of some CAUSE or ACCIDENT**
    - Ex. If cause – Victim prevents the accused from pickpocketing his wallet by grabbing the latter's hand
    - Ex. Of accident – Accused, in the process of firing a gun at his supposed gun, has his gun jammed after pulling the trigger
4. **Other than their own spontaneous desistance**
    - If the actor does not perform all the acts of execution by reason of his own spontaneous desistance, there is no attempted felony. The law does not punish him.
        - The **desistance may be through fear or remorse**. It is not necessary that it be actuated by a good motive. The Code requires only that the discontinuance of the crime comes from the person who has begun it, and that he stops of his own free will.
        - Desistance should be **made BEFORE** all the acts of execution are performed
        - Desistance which exempts from criminal liability **has reference to the crime intended to be committed**, and has **no reference to the crime actually committed by the offender before his desistance**

EXAMPLES of attempted crimes as there was no wound inflicted or such was not mortal:

1. The accused struck the victim on the head with a huge stone such that the victim was knocked out. There was no indicate of a fracture or internal bleeding
2. Stab wound sustained was superficial as it was only 2 centimeters long and 5 cm deep and no vital organ was hit
3. The accused threw a Chinaman into deep water, and as the latter did not know how to swim. He made efforts to keep himself afloat and seized the gunwale of the boat, but the accused tried to loosen the hold of the victim with the oar. The accused was prevented from striking the latter by other persons. Since the accused had the intent to kill the offended party, the former actually committed attempted homicide against the latter
4. The accused fired four consecutive shots at the offended part while the latter was fleeing to escape from his assailants and save his own life. Not having hit the offended party, either

because of his poor aim or because his intended victim succeeded in dodging the shots, the accused failed to perform all the acts of execution by reason of a cause other than his spontaneous desistance.

INDETERMINATE OFFENSES

- Purpose of performing a criminal offense is not certain. Its nature in relation to its objective is **AMBIGUOUS.**
- Intention of the accused must be **viewed from the nature of the acts executed by him, and not from his admission.**
- Acts susceptible of ***double interpretation***, that is, in favor as well as against the accused, and which show an innocent as well as a punishable act, must not and cannot furnish grounds by themselves for attempted crime.
- In offenees not consummated, as the material damage is wanting, the nature of the action intended cannot exactly be ascertained, but the same must be inferred from the nature of the acts executed. The overt acts leading to the commission of the offense are not punishable except when they are aimed directly at its execution, and therefore they must have an immediate and necessary relation to the offense.

SUBJECTIVE PHASE

- In attempted felony, the offender never passes the subjective phase of the offense
- It is the portion of the acts constituting the crime, starting from the point where the offender begins the commission of the crime to that point where he has still control over his acts, including their acts' natural course

FRUSTRATED FELONY

ELEMENTS

1. **Performs ALL the acts of execution** - Offender has performed all the acts of execution and nothing more is left to be done by the offender, because he has performed the last act necessary to produce the crime
    - ***The belief of the accused need not be considered***. What should be considered is whether all the acts of execution performed by the offender would produce the felony as a consequence
2. **All the acts performed WOULD produce the felony as a consequence**
    - In the case of *People vs. Kalalo*, the court sustains the rule that, in crimes against person, where the victim should die to consummate the felony, it is necessary for the frustration of the same that a *mortal wound* is inflicted.
3. But the felony is **NOT produced**
    - Otherwise, it would be *consummated*
4. **By reason of CAUSES INDEPENDENT OF THE WILL of the perpetrator**
    - Even if all the acts of execution have been performed, the crime may not be consummated, because *certain causes* may prevent the consummation. These may in the form of an intervention of 3rd persons who prevented the consummation of the offense or may be due to the perpetrator's own will.

- If the crime is not produce because the *offender himself prevented its consummation*, there is **no frustrated felony**, for the *4th element is not present*

Is there frustration due to inadequate or ineffectual means?

- Such a frustration is placed on the same footing as an ***impossible attempt.***

EXAMPLES of frustrated crimes due to a mortal wound:

1. Accused stabbed victim twice, one on his upper left chest and the other on the left side of his face, with the chest wound sufficient to result into his death were it not for the timely medical intervention
2. Accused shot victim in the left post-auricular area and the slug remained in the body, just behind the spinal column. Victim pretended to be dead and would not have survived the gunshot wound and would not have survived without medical treatment
3. Accused stab victim in the abdomen, penetrating the liver and in the chest. It was only the prompt and skillful medical treatment which the offender party received that saved his life
4. Accused wounded the victim in the left abdomen with a sharp weapon, causing a wound in the peritoneal cavity, serious enough to have produced death

ATTEMPTED, FRUSTRATED, AND IMPOSSIBLE CRIMES DISTINGUISHED

ATTEMPTED	FRUSTRATED	IMPOSSIBLE
EVIL INTENT IS NOT ACCOMPLISHED		
Offender ***merely commences the commission of a felony*** directly by **overt acts** and **DOES NOT perform all the acts** of execution **NOT** passed the **SUBJECTIVE PHASE** A **FOREIGN INTERVENTION**, other than the spontaneous desistance of the offender, occurred **BEFORE** all acts of execution are performed	Offender has ***performed* ALL *the acts of execution which would produce the felony*** as a consequence Reached the **OBJECTIVE PHASE** **NO FOREIGN INTERVENTION** or extraneous cause or agency **BETWEEN** the beginning of the crime and the time all acts are performed.	**CANNOT be** accomplished because... **INHERENTLY IMPOSSIBLE** or the **MEANS EMPLOYED** by the offender is ***inadequate or ineffectual***

There is No Attempted or Frustrated Impossible Crime

- In impossible crimes, the person intending to commit an offense has already performed the acts for the execution of the same, but nevertheless the crime is not produced by reason of the fact that the act intended is by its nature one of impossible accomplishment or because the means employed by such person are essentially inadequate or ineffectual to produce the result desired by him.
- Therefore, ***since the offender in impossible crime has already performed the acts for the execution of the same, there could be no attempted impossible crime.***
- There is no frustrated impossible crime, ***because the acts performed by the offender are considered as constituting a consummated offense.***

CONSUMMATED FELONY

- When a felony has all the elements necessary for its execution and accomplishment are present
- **ALL** the elements necessary for its execution and accomplishment must be present. Every crime has its own elements which must be present. ***Every crime has its own list of elements*** which must be proven to constitute a culpable violation of a precept of law.

When all the elements of a felony are proven

- When a felony has two or more elements and one of them is not proved by the prosecution during the trial, either the felony **is not shown to have been consummated**, the felony is ***not shown to have been committed***, *or* ***another felony is shown to have been committed.***
- **HOMICIDE**: If the victim ***survives,*** the crime is ***not consummated***. It is either attempted or frustrated.
- **THEFT**: ***When the element of intent to gain is lacking*** on the part of the person taking it, the ***crime of theft is not committed.***
- **ESTAFA**: If the ***elements of deceit or abuse of confidence is not proved***, there is ***no crime but civil liability***.
    - But if the ***element of damage only is not proven***, the accused may be found guilty of ***attempted or frustrated estafa.***
- **ROBBERY W/ VIOLENCE AGAINST PERSONS**: If the ***element if intent to gain is not proven,*** the accused can be found guilty of ***grave coercion***.
- **FORCIBLE ABDUCTION**: If the ***element of lewd designs is not proven,*** the accused may be held liable for ***kidnapping and serious illegal detention***.

DETERMINING IF THE CRIME IS ATTEMPTED, FRUSTRATED, OR CONSUMMATED

NATURE OF THE OFFENSE

- **ARSON:** Total destruction of the property is **NOT** necessary for the crime to be consummated. Consummation does not extend to the damage caused.
    - The burning of ANY portion of the property will consummate the crime.

ELEMENTS CONSTITUTING THE FELONY

- **THEFT:** The crime is consummated when the thief is able to take or get hold of the thing belonging to another, even if he is not able to carry it away.
    - Actual taking with the intent to gain of personal property, belonging to another, without the latter's consent, is sufficient to constitute consummated theft.
    - It is not necessary that the offender carries away or appropriates the property taken.
- **ESTAFA:** the crime is consummated when the offended party is actually damaged or prejudiced.
    - Elements are ***(1) abuse of confidence and (2) damage to the offended party must concur.***

There is no crime of Frustrated Theft

- For the purpose of ascertaining whether theft is susceptible of commission in the frustrated stage, the question is again, when is the crime of theft produced? There would be all but certain unanimity in the position that ***theft is produced when there is deprivation of personal property due to its taking by one with intent to gain***. Viewed from that perspective, it is ***immaterial to the product of the felony that the offender, once having committed all the acts of execution for theft, is able or unable to freely dispose of the property stolen*** since the deprivation from the owner alone has already ensued from such acts of execution.
- It might be argued, that the ability of the offender to freely dispose of the property stolen delves into the concept of taking itself, in that, there could be no true taking until the actor obtains such degree of control over the stolen item. But even if this were correct, the effect would downgrade the crime to its attempted and not frustrated stage, for it would mean that not all the acts of execution have not been complete, the taking not having been accomplished.

Example of Attempted Theft:

- The accused was found inside a parked jeep of Captain Parker by an American MP. The jeep's padlock had been forced open and lying between the front seats and the gearshift was an iron bar. Captain Parker was then inside a theater. It was held that the accused already commenced to carry out his felonious intention, and that if he did not perform all the acts of execution which should have produce the crime of theft, it was because of the timely arrival of the MP. The overt acts of the accused consisted in forcing open the padlock locking the gearshift to a ring attached to the dashboard which was placed there to avoid the jeep from being stolen.

Example of attempted estafa by means of deceit

- The accused fraudulently assumed authority to demand fees for the Bureau of Forestry, when he noticed that a timber was cut in the forest by the complainant without permit and used it in building his house. The accused tried to collect 6 pesos from the complainant ostensibly to save him from paying a fine and to prepare for him a petition to obtain a permit to cut timber. The complainant refused or was unable to 6 pesos to the accused.
- The fraudulent misrepresentation of the accused that he was authorized to collect 56 pesos are the overt acts. The refusal or inability of the complainant to give 56 pesos to the accused is a cause which prevented the latter from performing all the acts of execution.

Mere removal of personal property, not sufficient to consummate the crime of robbery by the use of force upon things.

- In robbery by the use of force upon things, since the offender must enter the building to commit the crime, he must be able to carry out of the building the thing taken to consummate the crime.
- In robbery with violence against or intimidation of persons, the crime is consummated the moment the offender gets hold of the thing taken and/or is in a position to dispose of it freely.

Element of intent to kill, when present in inflicting physical injuries

Facts: Defendant with a pocket knife inflicted several wounds on the victim. The words "*until I can kill you"* were uttered by the assailant

Held: Attempted Homicide, not physical injuries, was committed as intent to kill was present

Facts: The accused inflicted bolo wounds on the shoulder across the lips of the victim and then withdrew

Held: Only serious physical injures as the accused probably knew that the injuries were not enough to cause death. Intent to kill was not present

Facts: Accused attacked the offended party by giving fist blows, the wounds inflicted beng of slight nature. The accused then retreated after the offended party started hitting him with a bolo.

Held: The retreat out of fear, coupled with the slight nature of the wounds inflicted, led the Court to believe that intent to kill was lacking.

Facts: Accused shoots the victim once and not fatally.

Held: He could have shot at him more or worse, but he didn't. Thus, there was a lack of intent to kill.

MANNER OF COMMITTING CRIMES

1. *Formal Crimes – consummated in one instant, no attempt*

Ex. Slander, false testimony, sale of marijuana and other prohibited drugs

As a rule, there can be no attempt at a formal crime, because between the though and the deed there is no chain of acts that can be severed in any link. Thus, in slander, there is either a crime or no crime at all, depending upon whether or not defamatory words were spoken publicly.

2. *Crimes consummated by mere attempt or proposal or by overt acts*

Ex. Flight to enemy's country, Corruption of Minors, Treason

3. *Felony by Omission*

There can be ***no attempted stage*** when the felony is by omission, because in this kind of felony the offender does not executive acts. He omits to perform an act which the law requires him to do.

Ex. Starving a child

4. *Crimes requiring the intervention of two persons to commit them are consummated by mere agreement*

Ex. Betting in sports contests and corruption of a public officer (but if the officer returned the money, it is frustrated bribery)

A person who delivers an amount of money to an officer, where the latter plans to use such money for evidence to prosecute, is guilty of attempted bribery

5. *Material Crimes – There are 3 stages of execution*

CONSUMMATED RAPE: Entry of the labia without rupture of the hymen is consummated rape, thus...

There is no crime of frustrated rape.

- It is well-established in the case of *People vs. Orita* that perfect penetration is not necessary for Consummated Rape
- The ruling in *People vs. Erina* was a stray decision

ATTEMPTED RAPE: A person who merely undresses their victim and caresses their body, with no penetration done at all, is only guilty of attempted rape

CONSUMMATED HOMICIDE: A person is still guilty of homicide if there is evidence to show that he conspired with another to murder their victim, regardless that it was the other person who dealt the killing blow.

FRUSTRATED MURDER: A person is guilty of frustrated murder when their victim recovered from a fatal blow made by a knife.

ATTEMPTED HOMICIDE: A person is guilty of attempted homicide when they warned the victim beforehand, and that the blows made were not fatal.

Article 6 Cases

Rape

People v. Orita

- *Facts:* Accused coerced a female victim into a particular room in order to rape her. In both sexual positions, there was only *partial penetration* of the penis. The victim then found a window of escape when the accused laid down his knife when attempting coitus for the second time.
- *Issue:* WON complete penetration of the female organ is needed to consummate the crime of rape.
- *Held:* ***NO.*** Accused was found guilty of ***consummated rape***. ***Complete penetration of the female organ is not necessary to consummate the crime of rape.*** Therefore, partial penetration, which was proven in this case both by the victim's testimony and the medical officer's report, was enough to convict the accused of consummated rape.

People v. Campuhan

- *Facts:* A mother found her child and the househelp both with their pajamas and short pants down respectively. Perceiving this as an act of rape, the mother called for help and the househelp was arrested.
- *Issue:* WON the accused is guilty of consummated rape
- *Held:* ***NO.*** Accused was found guilty of ***attempted rape***. The findings of the medical officer and the unreliable narration of the mother, on account of her blocked field of vision of the incident, showed that there was *no penetration* done *at all.* The Court ruled that ***there must be convincing proof that the penis touched the labias or slid into the female organ***, and not merely stroking the external surface thereof.

Theft

U.S. v. Adiao

- *Facts:* A customs officer lifted a belf from a japanese national and hid it away in his work desk. He was unable to leave the customs office with the stolen belt as he was caught by officers beforehand.
- *Issue:* WON the customs officer is guilty of consummated theft.
- *Held:* ***YES.*** The customs officer was found guilty of ***consummated theft***. Being able to freely dispose of a stolen object is not necessary to consummated the crime of theft. It is enough that there be intent to gain, that the object intended to be gained was not owned by the thief, and that the object in question is now possessed or controlled by the thief.

Valenzuela v. People

- *Facts:* Accused and accomplice, posing as mall employees, lifted boxes of detergent, placed them in a vehicle, and attempted to leave via the parking lot. However, they were halted at that moment by the security guard in duty.
- *Issue:* WON the accused is guilty of consummated theft.
- *Held:* ***YES.*** The Court held that the moment the accused placed the boxes in the vehicle and attempted to leave the premises, they had already possessed and controlled the stolen items in question. It is immaterial that the security guard stopped them form actually leaving the parking lot and disposing of the stolen items afterwards.

Robbery

People v. Lamahang

- *Facts:* A patrolling police officer found the accused, wielding a iron bar, beside a wall of a cheap goods store manned by 2 chinese. ***The accused successfully broke one board and unfastened another.*** He was then and there apprehended by the officer for robbery.
- *Issue:* WON the accused is guilty of attempted robbery
- *Ruling:* ***NO.*** From the accused's actions, it ***cannot be reasoned that he intended to rob the store.*** From such acts, it could be seen that he was merely trespassing. When determining the stage of crime, the nature of the criminal act, the manner in which it is done, and its elements are considered. Thus, the court found the accused guilty of attempted trespass to dwelling since not all acts of execution were performed.

People v. Salvilla

- *Facts:* Four armed robbers forcibly entered a mill and demanded that the owner relinquish bags of money and several of his personal effects. These items were not physically acquired by the robbers but merely lay inside the building. The situation devolved into a hostage crisis. After negotiations fail, the police forced themselves in which lead to major physical injuries on the robbers and the hostages.
- *Issue:* WON the robbers are guilty of consummated robbery
- *Ruling:* **YES. *It is settled that if there is no taking, there is no robbery.*** In this situation, it may be true that the robbers did not *physically take* the items in question, but they were armed and have absolute control over the entire building. Such control would mean that the items might as well be under the control and dominion of the robbers, regardless of the lack of physical taking on their part.

Murder

U.S. v. Eduave

- *Facts:* Eduave stabs his accuser in the lumbar region from behind with a sharp bolo. Believing her to be dead, he then hid the body in the bushes. The victim was discovered to have survived from her wounds and left to seek help.
- *Issue:* WON Eduave is guilty of frustrated murder
- *Held:* ***YES.*** Eduave is found guilty of ***frustrated murder***, not homicide. Eduave committed all acts that would have produce the crime. But was, nevertheless, ***not produced due to the victim's subsequent survival.*** Furthermore, It is ***immaterial that Eduave believed the victim to have died by his hands.***

People v. Borinaga

- *Facts:* The accused attempted to kill his attempted victim due to non-payment of work wages. On the night of the incident, the supposed victim was sitting on a chair, with his back towards the window. From said window, the accused attempted to stab the victim but ended up stabbing the chair itself. The victim fell and the accused fled, knowing he missed his mark. The accused then returned to finish the job but was scared away by blinding flashlights.
- *Issue:* WON the accused is guilty of frustrated murder
- *Ruling:* ***YES.*** In this case, the Court took notice of t***he intent to kill, the targeting of the vital organs, and that all acts of execution were performed by the accused.*** Thus, it was considered frustrated murder and the subjective phase has been passed. It was due to external factors beyond his control

that the crime was not produced. It is immaterial that the victim was not physically harmed as a result. **HOWEVER,** this case ruling has now been superseded by ***People vs. Kalalo.***

People v. Sy Pio

- *Facts:* The accused, irked by a recent debt issue with his employers, went and shot *at* his employers and several others in a shop. One of the supposed victims fled. Eventually, knowing he failed to kill anyone, the accused himself fled the scene.
- *Issue:* WON the accused is guilty of frustrated murder
- *Ruling:* ***NO.*** The accused is instead charged with ***attempted murder.*** In this case, not all acts of execution were committed. This is due to the fact that the accused fled with the believed that he did not hit his target in any vital organ. Furthermore, he could have pursued his target but didn't. ***The Court placed emphasis on the fact that the accused believed that he did not commit all acts of execution.***

People v. Ravelo

- *Facts:* The accused and several others kidnapped several victims to be physically tortured while hanging under a mango tree. One of the accused, Lugatiman, was beaten and tied to a wall, gagged and blindfolded. One witness saw the incident claiming that the captors, including the accused, would kill the victim at exactly 9 PM. Before this could occur, the victim escape his predicament and reported the incident to the police
- *Issue:* WON the accused is guilty of frustrated murder
- *Ruling:* ***NO.*** Instead, the accused were found guilty of slight physical injuries on the issue of Lugatiman. Mere intent to kill was not shown here as the injuries sustained by Lugatiman were not serious. Furthermore, ***a mere verbal statement of Lugatiman's impending doom is not sufficient proof to show intent to kill.***

Homicide

People v. Kalalo

- *Facts:* Accused held resentment against the offended party due to a long drawn-out agricultural dispute. In the climax of such dispute, two men were killed instantly. Thus, in fear of their life, another fled. The accused, in response, shot at the fleeing brother of her rival four times, but none hit its mark
- *Issue:* WON accused is guilty of frustrated homicide of the brother
- *Ruling:* ***NO. Instead, he was charged with attempted homicide.*** Although the four shots clearly show an intent to kill, the fact that none of the shots hit will denote that not all acts of execution were performed. Furthermore, the "*skill issue*" on the part of the accused or the brother's *expert dodging* will count as a cause or incident other than the accused's spontaneous desistance, in accordance with the definition of attempted crimes.

ARTICLE 7. When Light Felonies are Punishable. — Light felonies are punishable only when they have been consummated, with the exception of those committed against person or property.

Light Felonies

- Those infractions of law for the commission of which the penalty of ***arresto menor*** or a **fine not exceeding *Php 40,000***, or both, is provided. (Art. 9, par. 3)

Light Felonies punished by the R.P.C.:

1. Slight physical injuries (Art. 266, pars. 2 and 3)
2. Theft (Art. 309, pars. 7 and 8)
3. Alteration of boundary marks (Art. 313)
4. Malicious mischief (Art. 328, par. 3; Art. 329, par. 3)
5. Intriguing against honor (Art. 364)
6. Disobedience to an agent of a person in authority (Art. 151, par. 2)
7. Alarms and scandals (Art. 155)
8. Concealing true name (Art. 178)
9. Prostitution (Art. 202)
10. Other forms of trespass (Art. 281)
11. Other light threats (Art. 285)
12. Light coercion (Art. 287)
13. Destroying and damaging paintings (Art. 331)
14. Slander by deed, not serious (Art. 359)

Important Words and Phrases

1. *"With the exception of those committed against persons or property."*

General Rule
Light felonies are **punishable *only*** when they have been ***consummated.***

Exception: Light felonies committed against ***persons or property***, are punishable even if ***attempted*** or ***frustrated***.

Reason for the general rule

- Light felonies produce such *light,* such *insignificant* moral and material injuries that public conscience is satisfied with providing a light penalty for their consummation.
- If they are *not consummated*, the wrong done is so slight that there is *no need* of providing a penalty at all. (Albert)

Reason for the exception

- The commission of felonies *against persons and property* presupposes in the offender *moral depravity*. For that reason, even *attempted or frustrated* light felonies against persons or property are punishable.

Example of light felonies against person

- Article 266 - slight physical injuries and maltreatment

Examples of light felonies against property

- Article 309, No. 7 - Theft by hunting or fishing or gathering fruits, cereals or other forest or farm products *upon and inclosed estate or field* where trespass is forbidden and the value of the thing stolen *does not exceed Php 500.*
- Article 309, No. 8 - Theft, where the value of the stolen property *does not exceed Php 500* and the offender was

prompted by hunger, poverty, or the difficulty of earning livelihood.

- Article 328, No. 3; Article 329, No. 3 - Malicious mischief where the *damage is not more than Php 40,000* or if it cannot be estimated.

ARTICLE 8. Conspiracy and Proposal to Commit Felony. — Conspiracy and proposal to commit felony are punishable only in the cases in which the law specially provides a penalty therefor.

A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it.

There is proposal when the person who has decided to commit a felony proposes its execution to some other person or persons.

Important Words and Phrases

1. *"Conspiracy and proposal to commit felony."*

   Conspiracy and **proposal to commit felony** are two different acts or felonies:
   (1) Conspiracy to commit a felony; and
   (2) Proposal to commit a felony.

2. *"Only in the cases in which the law specially provides a penalty therefor."*

   Unless there is a **specific provision in the RPC providing a penalty** for conspiracy or proposal to commit a felony, ***mere conspiracy or proposal is NOT a felony.***

Conspiracy

- Exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it (Art. 8).

- **Generally, conspiracy is not a crime except when the law specifically provides a penalty therefor as in:**
    - **Treason** (Art. 115) - punished by *prision mayor* and a fine not exceeding *Php 2,000,000.*
    - **Coup d'etat** (Art. 136) - punished by *prision mayor* and a fine which shall not exceed *Php 1,000,000.*
    - **Rebellion or Insurrection** (Art. 136) - punished by *prision correcional* in its maximum period and a fine which shall not exceed *Php 1,000,000.*
    - **Sedition** (Art. 141) - punished by *prision mayor* in its medium period and a fine not exceeding *Php 400,000.*
- The crime of conspiracy known to the common law is not an indictable offense in the Philippines.
- An **agreement to commit a crime** is a reprehensible act from the viewpoint of morality, but **as long as the conspirators do not perform overt acts in the furtherance of their malevolent design,** the sovereignty of the State is not outraged and the tranquility of the public remains undisturbed.

General Rule
Conspiracy and proposal to commit felony are **not punishable.**
Exception: They are punishable only in the cases in which the law ***specifically provides a penalty therefor.***

Reason for the rule

- Conspiracy and proposal to commit a crime are only ***preparatory acts,*** and the law regards them as ***innocent*** or at least ***permissible*** except in rare and exceptional cases.

Treason, coup d'etat, rebellion or sedition should not be actually committed

- Conspirators *should not actually commit* treason, coup d'etat, rebellion or sedition
- It is sufficient that two or more persons agree and decide to commit the aforementioned.
- If they commit, say, treason, **they will be held liable for treason,** and the conspiracy which they had before committing treason is **only a manner of incurring criminal liability.** It is **not a separate offense.**

Conspiracy as a FELONY distinguished from Conspiracy as a MANNER OF INCURRING CRIMINAL LIABILITY

- When the conspiracy relates to a *crime actually committed*, it is *not a felony* but *only a manner of incurring criminal liability,* that is, when there is conspiracy, **the act of one is the act of all**.
- Even if related to treason, rebellion and sedition, the conspiracy is not a separate offense; only a manner of incurring criminal liability.
- All the conspirators who carried out their plan and personally took part in its execution are equally liable.

Illustrations of conspiracy as felony and as a manner of incurring criminal liability:

1. A and B agreed and decided to rise publicly and take arms against the government with the help of their followers.
    - Even if they did not carry out their plan to overthrow the government, A and B are **liable for conspiracy to commit rebellion** under Art. 136 of the RPC.
    - But if A and B and their followers did rise publicly and take arms against the government to overthrow it,

thereby committing rebellion, **their conspiracy is not a felony. They are liable for rebellion,** and their conspiracy is only a *manner of incurring criminal liability* for rebellion.

2. A, B, and C, after having conceived a criminal plan, got together, agreed and decided to kill D.
    - If they failed to carry out the plan for some reason or another, they are **not liable for having conspired against D,** because the crime they conspired to commit, which is **murder**, is not treason, rebellion, or sedition.
    - But if they carried out the plan and personally took part in its execution which resulted in the killing of D, they are **all liable for murder**, even if A merely actted as a guard outside, and B merely held the arms of D when C stabbed him.
        - Their conspiracy is only a manner of incurring criminal liability for murder. It is not an offense, not only because a crime was committed after the conspiracy, but also because conspiracy to commit murder **is not punished in the RPC.**

Indications of Conspiracy

- When the defendants, by their **acts aimed at the same object**, one performing one part and the other performing another part so as to complete it, with a **view to the attainment of the same object**, and their acts, though apparently independent, were in fact **concerted and cooperative**, indicating closeness of personal association, concerted action and concurrence of sentiments.
- **For a collective responsibility among the accused to be established,** it is sufficient that at the time of the aggression, all of them acted in concert, each doing this part to fulfill their common design to kill their victim, and although only one of them may have actually stabbed the victim, **the act of that one is deemed to be the act of all.**

The acts of the defendants must show a common design

- There must be: 1) unity of purpose, and 2) unity in the execution of the unlawful objective.

Period of time to afford opportunity for meditation and reflection, not required in conspiracy.

- Conspiracy arises **on the very instant the plotters agree**, expressly or impliedly, to commit the felony and forthwith decide to pursue it.
- Once this assent is established, each and everyone of the conspirators is made criminally liable for the crime, committed by anyone of them.

Requisites of Conspiracy

1. That *two* or more persons came to an agreement;
2. That the agreement concerned the *commission* of a felony; and
3. That the *execution* of the felony be *decided* upon.

1st element *— agreement presupposes meeting of the minds of two or more persons.*

- A document is discovered purporting to be a commission appointing the defendant an officer of armed forces against the government ***does not prove*** conspiracy, because it was not shown that defendant ***received or accepted*** that commission. (US vs. Villarino, 5 Phil. 697)

2nd element *— the agreement must refer to the commission of a crime. It must be an agreement to act, to effect, to bring about what has already been conceived and determined.*

- Mere fact that the defendant met and aired some complaints, showing discontent with the Government over some real or fancied evils, is not sufficient. (US v. Figueras, 2 Phil. 491)

3rd element *— the conspirators have made up their minds to commit the crime. There must be a determination to commit the crime of treason, rebellion, or sedition.*

Direct proof is not essential to establish conspiracy.

- It may be **inferred** from the collective acts of the accused before, during and after the commission of the crime.
- Conspiracy can be presumed from and proven by acts of the accused themselves when the said acts point to a joint purpose and design, concerted action an community of interests

Quantum of proof required to establish conspiracy

- Elements of conspiracy must be **proven beyond reasonable doubt.**
    - Evidence of actual cooperation rather than mere cognizance or approach of an illegal act is required.
- It must be established by **positive and conclusive evidence.**
    - Shown to exist as clearly and convincingly as the commission of the crime itself.
    - Mere presence of a person at the scene of the crime does not make him a conspirator for conspiracy transcends companionship.

Requisites of Proposal

1. That a person *has decided to commit a felony;* and
2. That he *proposes its execution* to some other person or persons.

There is no criminal proposal when—

1. *The person who proposes is not determined to commit the felony.*
    - Example: A desires that the present government be overthrown but A is afraid to do it himself with others. A then suggests overthrowing of the government to some desperate people who will do it at the slightest provocation. In this case, A is not liable for proposal to commit rebellion because A has not decided to commit it.

2. *There is no decided, concrete and formal proposal.*
    - In the aforementioned example, not that there was merely a **suggestion**, not a decided, concrete and formal proposal.

3. *It is not the execution of a felony that is proposed.*
    - Example: A conceived the idea of overthrowing the present government. A called several of his trusted followers and instructed them to go around the country and secretly to organize groups and to convince them of the necessity of having a new government. Note that

what A proposed in this case is **not the execution of the crime of rebellion, but the performance of preparatory acts for the commission of rebellion**. Therefore, there is *no criminal proposal.*

It is not necessary that the person to whom the proposal is made agrees to commit treason or rebellion.

- What constitutes the felony of proposal to commit treason or rebellion is the **making of proposal**.
- The law **does not require that the proposal be accepted** by the person to whom the proposal is made. If it is accepted, it may be conspiracy to commit treason or rebellion, because there would be an agreement and a decision to commit it.

Proposal as an overt act of corruption of public officer.

- One who offers money to a public officer to induce him not to perform his duties, but the offer is rejected by the public officer, is liable for **attempted bribery**.

The crimes in which conspiracy and proposal are punishable are against the security of the State or economic security.

- Treason is against the *external* security of the State. Coup d'etat, rebellion and sedition are against *internal* security. Monopolies and combinations in restraint of trade are against economic security.
- **Reason:** In ordinary crimes, the State survives the victim, and the culprit cannot find in the success of his work any impunity. Whereas, in crimes against the external and internal security of the State, if the culprit succeeds in his criminal enterprise, he would obtain the power and therefore impunity for the crime committed.

ARTICLE 9. Grave Felonies, Less Grave Felonies and Light Felonies. — Grave felonies are those to which the law attaches the capital punishment or penalties which in any of their periods are afflictive, in accordance with article 25 of this Code.

Less grave felonies are those which the law punishes with penalties which in their maximum period are correctional, in accordance with the abovementioned article.

Light felonies are those infractions of law for the commission of which the penalty of arresto menor or a fine not exceeding 200 pesos or both, is provided.

Light Felonies	Less Grave Felonies	Grave Felonies
Penalty of arresto menor	Penalties which in their maximum period are correccional	Capital punishment or penalties in which in any of their periods are afflictive
Fine not exceeding P200 (now P40,000)	P40,000 to P1,200,000	More than P1,200,000

Afflictive Penalties	Correccional Penalties
1. Reclusion perpetua 2. Reclusion temporal 3. Perpetual or temporary absolute disqualification 4. Perpetual or temporary special disqualification 5. Prision mayor	1. Prision correccional 2. Arresto mayor 3. Suspension 4. Destierro

ARTICLE 10. Offenses Not Subject to the Provisions of this Code. — Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.

- ***Lex specialis derogat generali*** - Special legal provisions prevail over general ones
- Special penal laws are controlling with regard to offenses

"The code shall be supplementary to special laws, unless the latter should specifically provide the contrary."

- Not supplementary when the penalties under the special law are different from those under RPC
- Not applied, unless stipulated in the special law - ***nullum crimen bulla poena sine lege***
    - Attempted and frustrated crimes
    - Mitigating or aggravating circumstances
    - Accessory penalty
    - Accomplice
- When the special law adopted penalties from RPC, the rules for graduating penalties by degrees or determining the proper period should be applied
- Special laws amending RPC are subject to its provisions

Suppletory application of RPC only when the provisions of the special law are silent on a particular matter

1. Subsidiary Penalty (Art. 39) applied to the Revised Motor Vehicle Law
2. Civil liability (Art. 100) applied to the Revised Motor Vehicle Law
3. Rules on Service of Sentence (Art. 70) applied to the Dangerous Drugs Act of 1972
4. Definition on Principals, Accomplices, and Accessories (Art. 17, 18, 19) applied to the Migrant Workers and Overseas Filipinos Act of 1995
5. Principle of Conspiracy (Art. 8) applied to B.P. 22

ARTICLE 11. Justifying Circumstances. — The following do not incur any criminal liability:

1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:
   First. **Un**lawful aggression;
   Second. **Rea**sonable necessity of the means employed to prevent or repel it;
   Third. **L**ack of sufficient provocation on the part of the person defending himself.
   * Mnemonic: **UNREAL**

2. Anyone who acts in defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or of his relatives by affinity in the same degrees, and those by consanguinity within the fourth civil degree, provided that the first and second requisites prescribed in the next preceding circumstance are present, and the further requisite, in case the provocation was given by the person attacked, that the one making defense had no part therein.

3. Anyone who acts in defense of the person or rights of a stranger, provided that the first and second requisites mentioned in the first circumstance of this article are present and that the person defending be not induced by revenge, resentment, or other evil motive.

4. Any person who, in order to avoid an evil or injury, does an act which causes damage to another, provided that the following requisites are present:
   First. That the evil sought to be avoided actually exists;
   Second. That the injury feared be greater than that done to avoid it;
   Third. That there be no other practical and less harmful means of preventing it.

5. Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.

6. Any person who acts in obedience to an order issued by a superior for some lawful purpose.

- There is no crime committed, the act being justified.
- The burden of proof is incumbent upon the accused.

Paragraph 1. Anyone who acts in defense of his *person* or *rights*, provided that the following circumstances concur:
First. Unlawful aggression;
Second. Reasonable necessity of the means employed to prevent or repel it;
Third. Lack of sufficient provocation on the part of the person defending himself.

Self-defense

- In defense of his *person* or *rights*

Requisites

1. Unlawful aggression;
2. Reasonable necessity of the means employed to prevent or repel it;
3. Lack of sufficient provocation on the part of the person defending himself.

Basis of Justification

- Classicists: Lawful defense is grounded on the impossibility on the part of the State to avoid a present unjust aggression and protect a person unlawfully attacked.
- Positivists: Lawful defense is an exercise of a right, an act of social justice done to repel the attack of an aggression.
- "Retreat to the wall" has now given way to the new rule "stand ground when in the right."

1. Unlawful aggression

- Unlawful aggression is equivalent to assault or at least threatened assault of an immediate and imminent kind.
- Present when the peril to one's life, limb, or right is either actual or imminent.
    - Actual - that the danger must be present; actually in existence
    - Imminent - that the danger is on the point of happening; it is not required that the attack already begins, for it may be too late
- There must be *actual physical force* or *actual use of a weapon*.
- The unlawful aggression and killing in self-defense should succeed each other *without appreciable interval of time*. The accused must have no time nor occasion for deliberation and cool thinking.
- The unlawful aggression *must come from the person who was attacked by the accused.*
- Test: Whether his subjective belief as to the imminence and seriousness of the danger was reasonable or not, viewed from his standpoint at the time he acted.

Examples:

When present?	When absent?
● Slap on the face ● Strong retaliation for an injury or threat ● If aggressor posed a threat even if disarmed ● When aggressor retreats to take a more advantageous position ● Aggression which is ahead of the stipulated time and place ● Threat to inflict real injury ● Picking up a weapon when intent to attack is manifest ● Public officer exceeding his authority	● Foot-kick greeting ● Act of pulling "something" out ● When the aggressor flees ● When there is agreement to fight ● Mere threatening attitude

2. Reasonable necessity of the means employed to prevent or repel it

- To prevent a threat to inflict real injury

- To repel an actual physical assault

Requisites

a. Reasonable necessity of the course of action taken
   i. Place and occasion of assault
   ii. The darkness of the night and the surprise which characterized the assault considered
b. Reasonable necessity of the means used
   i. Nature and quality of weapon used
      - Limitations:
        - If the person assaulted had no other available means; or
        - If there was other means, he could not coolly choose the less deadly weapon to repel the assault
      - Knife/dagger v club
      - Firearm v knife/dagger
      - Pocket knife v cane
      - Gun v bolo
      - Bolo/knife v stick
      - Fist v fist - when they are of the same size and strength
   ii. Physical condition, character, and size
   iii. Other circumstances considered

Doctrine of Rational Equivalence

- Rational equivalence, not material commensurability, of the emergency, imminent danger, and instinct
- Proportionality does not depend upon the harm done, but rests upon the imminent danger of such injury

3. Lack of sufficient provocation on the part of the person defending himself

a. No provocation at all
b. There was provocation, but not sufficient (proportionate and adequate)
c. Sufficient provocation not given by the person defending himself
d. Provocation by the person defending himself not proximate and immediate to the aggression

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Article 11 Cases

People v. Boholst-Caballero

- *Facts:* Cunigunda Boholst-Caballero had a tumultuous relationship with Francisco Caballero. While returning from caroling, she encountered her husband who had attacked her: slapping her, pulling her hair, and choking her, which left her with no choice but to defend herself.
- *Issue:* Was Cunigunda's act a valid self-defense? **YES.**
- *Ruling:* Supreme Court acquitted Cunigunda, finding that she acted in self-defense. The primary piece of evidence was the location of the wound on Francisco's body (left lumbar region), which was consistent with Cunigunda's account of the incident—pulling the knife from his belt whil lying on her back and stabbing him in self-defense.

People v. Alconga

- *Facts:* Conflict started in a blackjack game, where Dioscoro Alconga and Maria de Raposo cheated Silverio Barion, causing him to lose money. While Alconga was on duty as a home guard, Barion attacked him with a pingahan. Alconga avoided initial blows and while crawling, shot Barion with a revolver. Despite being wounded, Barion continued to attack with a dagger, leading to a hand-to-hand fight. Barion fled, but Alconga pursued and fatally struck him with a bolo.
- *Issue:* Did Alconga act in self-defense in the second stage of the fight? **NO.**
- *Ruling:* Alconga was not acting in self-defense when he pursued and killed Barion after the latter had fled. When Alconga pursued the deceased, he was no longer acting in self-defense, there being then no more aggression to defend against, the same having ceased from the moment the deceased took to his heels.

U.S. v. Mack

- *Facts:* Mack, a soldier, was charged with assassination and convicted of homicide for fatally shooting municipal policeman Estanislao Indic. The altercation began when Estanislao ordered Mack to return to headquarters, which he refused. In response, Estanislao verbally confronted him and approached with a bolo.
- *Issue:* Was Mack entitled to the justifying circumstance of complete self-defense? **YES.**
- *Ruling:* The evidence shows that there was an unprovoked, illegal aggression on the part of the deceased. The Supreme Court ruled that the defendant was not obligated to flee when faced with imminent danger. A person under attack does not need to retreat if there's no reasonable belief that doing so would ensure safety.

People v. Sumicad

- *Facts:* Julian Sumicad and others were resting after hauling logs for chapel construction. Segundo Cubol, who owed Sumicad for five and a half days of labor, passed by. Sumicad asked for his payment, and Cubol responded with an insulting expression and struck Sumicad with his fist. Sumicad tried to retreat but was cornered by a pile of logs. As Cubol continued his assault, Sumicad drew his bolo and struck Cubol on the right shoulder. Cubol attempted to wrest the bolo from Sumicad, prompting Sumicad to deliver two more blows, inflicting fatal wounds on Cubol's forehead. Cubol died shortly after from these injuries.
- *Issue:* Was Sumicad criminally liable for Segundo's death? **NO.**
- *Ruling:* Court ruled that Sumicad was acting in self-defense. When Cubol attempted to take Sumicad's bolo, Sumicad was justified in using it to protect himself. Elements of self-defense were all present: unlawful aggression, reasonable necessity, lack of sufficient provocation.

People v. Genosa

- *Facts:* Marivic Genosa was charged with parricide for killing her husband, Ben Genosa. The couple had a tumultuous relationship marked by frequent physical abuse, with Marivic often seeking refuge with her parents. On the night of the incident, Ben, who was intoxicated, allegedly threatened Marivic with a bolo and a blade. Fearing for her life and that of her unborn child, Marivic struck Ben with a pipe and

subsequently shot him. She claimed self-defense based on the "battered woman syndrome" (BWS).

- *Issue:*
  1.) Did Marivic exhibit BWS? **NO.**
  2.) Can she employ BWS as self-defense? **NO.**
- *Ruling:* The court ruled that Marivic was not entitled to complete exoneration based on self-defense because there was no unlawful aggression or immediate and unexpected attack on her by her husband at the time she shot him. The Court ruled that even with BWS, the principle that aggression if not continuous, does not warrant self-defense. In the absence of such aggression, there can be no self-defense – complete or incomplete – on the part of the victim. In the case at bar, Marivic was already able to withdraw from Ben's violent behavior after smashing him and escaping to their children's bedroom.

Battered Woman Syndrome as a defense

- Battered Woman Syndrome (BWS) - scientifically defined pattern of psychological and behavioral symptoms found in women living in battering relationships as a result of cumulative abuse
- Must go through the battering cycle at least twice
- Tension - Violence - Forgiveness
  (1) Tension-building phase - minor battering; verbal or slight physical abuse
  (2) Acute battering incident - brutal, destructive, even death
  (3) Tranquil, loving phase - begging and forgiveness
- Effect
  - Battered woman believes she is somehow responsible for the violent behavior of her partner.
  - She also believes that he is capable of killing her, and that there is no escape.

Defense of honor

People v. Luague

- *Facts:* Natividad was at home with her three young children while Wenceslao was away grinding corn at Juan Garing's house. Paulino Disuasido arrived and made advances towards Natividad, which she refused. Paulino followed Natividad to the kitchen, threatened her with a knife, and attempted to rape her. Natividad seized an opportunity when Paulino left the knife on the floor and stabbed him in the abdomen. Paulino fled but later died from his injuries.
- *Issue:* Whether or not the wife's act of self defense was justifiable. **YES.**
- *Ruling:* The court ruled that Natividad Luague acted in legitimate self-defense and was justified in her actions. The attempt to rape Natividad constituted sufficient aggression to justify her act of self-defense. The court cited legal commentary stating that *a woman's honor is as precious, if not more, than her life, and that killing an aggressor in such circumstances is not a crime but a necessary act to protect one's honor.*

People v. De la Cruz

- *Facts:* De la Cruz, along with Francisco Ramos, his wife Brigida Vistada, his sister Baltazara Ramos, and a woman named Consuelo or Natividad Santoyo, attended a wake at

Maria Inguit's house. As they returned home around nine o'clock, Francisco Rivera, who had been playing cards at the wake, followed them with Enrique Bautista. Rivera overtook the group and, at a narrow part of the path, allegedly grabbed de la Cruz from behind, touching her private parts. In response, de la Cruz stabbed Rivera with a pocket-knife.

- *Issue:* Whether or not Remedios de la Cruz, the defendant, is criminally liable. **NO.**
- *Ruling:* The Court found that the deceased, Francisco Rivera, did indeed grab de la Cruz from behind on a dark night, without identifying himself, and touched her private parts. Given the circumstances, de la Cruz was justified in using a pocket-knife to defend her honor, as she had no other means of protecting herself. In *United States v. Ah Chong*:
    - "A person is not criminally responsible when, **by reason of a mistake of facts**, he does an act for which he would be exempt if the facts were as he supposed them to be, but would constitute murder if he had known the true state of facts at the time, provided that the ignorance or mistake of fact was not due to negligence or bad faith."

  Remedios de la Cruz believed that she was being attacked and molested, and in the dark of the night, could not properly ascertain the identity of her assailant who, himself did not make his identity known when asked, and as such found necessity in using the pocket knife to defend her honor.

People v. Jaurigue

- *Facts:* Avelina Jaurigue was convicted of homicide for killing Amado Capia in a chapel. Amado persistently courted Avelina and was rejected multiple times. Amado previously took Avelina's handkerchief and, on another occasion, embraced, kissed, and touched her inappropriately. Due to these advances, Avelina armed herself with a knife for self-protection. On the night of the incident, Amado sat beside Avelina in a well-lit chapel and placed his hand on her thigh. In response, Avelina stabbed Amado in the neck with a knife, resulting in his death.
- *Issue:* Can Avelina invoke the justifying circumstance of defense of honor? **NO.**
- *Ruling:* Although the court recognized the violation of Jaurigue's personal dignity and honor, it found that the means employed (a fatal stab to the neck) were excessive. The chapel was well-lit, and several people were present, including her father and the barrio lieutenant—there was no immediate risk of rape or grievous harm.

Defense of property

People v. Apolinar

- *Facts:* Believing that Petros had stolen his palay, Apolinar (entrusted to watch over Gonzales' land) fired his shotgun in the air and then at Petros, causing his eventual death.
- *Issue:* Is it justifiable for Apolinar to kill Petros in defense of his property? ***UNJUSTIFIABLE***.
- *Ruling:* Defense of property is of not such importance as right to life, and defense of property can be invoked as a justifying circumstance only when it is coupled with an attack on the person of one entrusted with said property.

U.S. v. Bumanglag

- *Facts:* Bumanglag, Bundoc, and Ribao assaulted Ribis, whom they presumed to be a palay thief. Ribis died instantly because of the attack.

- *Issue:* Was the attack a justifiable act of defense of property? ***UNJUSTIFIABLE***.
- *Ruling:* It was not an act of self-defense as the bolo worn by the deceased was sheathed. There being no signs of prior illegal aggression, the accused and his co defendants are guilty of homicide

People v. Narvaez

- *Facts:* Narvaez, awoken by the fencing activity of Fleischer and Rubia, asked them to stop damaging his house. Fleischer, however, insisted the work be resumed. Narvaez shot Fleischer, and then Rubia who was running toward a jeep where a gun was located.
- *Issue:* Was Narvaez' shooting of the two justifiable? ***SOMEWHAT JUSTIFIABLE***.
- *Ruling:* Although the Court acknowledged unlawful aggression and lack of provocation, it deemed Narvaez's actions as an incomplete self-defense due to the lack of reasonable necessity of the means employed.

Defense of home

- Violent entry to another's house by an armed aggressor.
- The owner of the house need not wait for a blow before repelling the aggression, as that blow may prove fatal.

Defense of reputation

People v. Chua Hiong

- *Facts:* Chua Hiong was found guilty of libel against Gocheco. The publication alleged, among other things, that Gocheco was behind several acts of libel against Chua Hiong. The publication also assailed Gochenco's doubts on Chua Hiong's citizenship. In an earlier publication by Gocheco, he placed doubt on Chua Hiong's citizenship.
- *Issue:* Is libel in response to an earlier libelous act justifiable? ***JUSTIFIABLE.***
- *Ruling:* Chua Hiong's publication, while libelous, was lawful considering that libel was also committed against him by Gocheco.

People v. Pelayo

- *Facts:* Pelayo told Atty. Clapano during a hearing that Governor Almendras demanded "tongs" from gambling operators. Then, he delivered a speech clearly but indirectly referencing Almendras receiving "tongs."
- *Issue:* WON Pelayo can invoke defense of reputation as a valid defense against slander? ***NO.***
- *Ruling:* Pelayo claimed that his statements were covered by the rule on privileged communication. If he acted in self-defense, then it should not have been done in confidence. Moreover, Pelayo went beyond explaining what was previously said of him for the purpose of repairing the effect of the damage caused to him.

Paragraph 2. Anyone who acts in defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or of his relatives by affinity in the same degrees, and those by consanguinity within the fourth civil degree, provided that the first and second requisites prescribed in the next preceding circumstance are present, and the further requisite, in case the provocation was given by the person attacked, that the one making defense had no part therein.

Defense of relative

Requisites

1. **U**nlawful aggression;
2. **R**easonable necessity of the means employed to prevent or repel it;
3. In **c**ase the provocation was given by the person attacked, the *one making a defense **h**ad **no** part therein.*

* Mnemonic: **URIC Acid ($C_5H_4N_4O_3$)**

- It can be made to depend upon the honest belief of the one making a defense, even if there was a mistake of fact

Relatives that can be defended

1. Spouse
2. Ascendants
3. Descendants
4. Legitimate, natural or adopted brothers and sisters, or relatives by affinity in the same degrees
5. Relatives by consanguinity within the fourth civil degree

Basis of Justification

- Humanitarian sentiment
- Impulse of blood

U.S. v. Esmedia

- *Facts:* Gregorio first attacked his brother-in-law Santiago with a dagger. Upon seeing Santiago retaliating with a bolo while Gregorio fell to the ground, Gregorio's sons went to assist him and killed Santiago and his 80-year old father, Ciriaco, with clubs and bolos.
- *Issue:* Is the accused's murderous act justifiable on the ground of defense of a relative? ***JUSTIFIABLE.***
- *Ruling:* The two are not criminally liable for the murder of Santiago as their actions were executed in the defense of their father, who was already fatally wounded. They had a well founded belief that Santiago would inflict more wounds on their father. However, the two are liable for the murder of Ciriaco who posed no threat to them.

Paragraph 3. Anyone who acts in defense of the person or rights of a stranger, provided that the first and second requisites mentioned in the first circumstance of this article are present and that the person defending be not induced by revenge, resentment, or other evil motive.

Defense of strangers

Requisites

1. **U**nlawful aggression;
2. **Re**asonable necessity of the means employed to prevent or repel it;
3. The person defending is ***not i**nduced by revenge, resentment, or other evil motive.*

* Mnemonic: **U'RE NOTI** (you're naughty)

Basis of Justification

- What one may do in his defense, another may do for him.
- To encourage people to protect strangers

Stranger

- Any person not included in the enumeration of relatives mentioned in paragraph 2

Paragraph 4. Any person who, in order to avoid an evil or injury, does an act which causes damage to another, provided that the following requisites are present:

First. That the evil sought to be avoided actually exists;
Second. That the injury feared be greater than that done to avoid it;
Third. That there be no other practical and less harmful means of preventing it.

Avoidance of a greater evil

Requisites

1. The evil sought to be avoided actually exists;
2. The injury feared be **greater than** that done to avoid it;
3. There are no other practical and less harmful **mean**s of preventing it.

* Mnemonic: **X>MEN**

- "Damage to another" covers injury to persons and damage to property
- The greater evil should not be brought about by the negligence or imprudence of the actor.
- Civil liability is borne by the persons benefited in proportion to the benefit which they may have received.

People v. Norma Hernandez

- *Facts:* Norma escaped from her wedding after all the preparations had been made, claiming she never wanted to get married to Vivencio but was unduly influenced by her family.
- *Issue:* Is Norma's act of slander by deed justifiable on the ground of avoidance of a greater evil? ***JUSTIFIABLE.***
- *Ruling:* Appellant had the right to avoid the evil of going through a loveless marriage.
- Note: The evil sought to be avoided is speculative. She could possibly fall in love with Vivencio. There are also other practical and less harmful means of preventing it. She could have at least left a note.

Regina v. Dudley

- *Facts:* Four men were stranded in the high seas without food or water. Without any sail in sight nor any reasonable prospect of relief, three men killed and fed upon a boy upon the belief that otherwise, they would die of starvation.
- *Issue:* Is commission of murder by the accused justifiable on the ground of necessity? ***UNJUSTIFIABLE***.
- *Ruling:* There is no certainty that they will avoid death by starvation. The injury of taking one life is not greater than the evil sought to be avoided, which is of all of them dying. The killing of an innocent boy, who was not threatening Dudley or Stephens, is never justified.

Ty v. People

- *Facts:* Ty claims she was compelled to issue 7 postdated checks to pay for her mother's hospital bills due to the fear that her mother's health might deteriorate further due to the inhumane treatment of the hospital, or worse, her mother might commit suicide.
- *Issue:* Is it justifiable for Ty to commit 7 counts of violation of B.P. 22 on the ground of necessity? ***UNJUSTIFIABLE***.

- *Ruling:* The evil sought to be avoided is merely expected or anticipatory. The injury is caused by her own negligence due to her failure to pay. She failed to avail other options of paying the bills, such as through jewelry.

Paragraph 5. Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.

Fulfillment of duty

Requisites

1. The accused acted in the performance of a **duty** or in the **lawful exercise** of a right or office;
2. The injury caused or the offense committed is the **necessary consequence** of the *due* performance of duty or the lawful exercise of such right or office.

- The public officer may be the aggressor but his aggression is not unlawful.
- Shooting of a prisoner by guard must be in self-defense or be absolutely necessary to avoid his escape.
- Shooting an offender who refused to surrender is justified.
- Shooting a thief who refused to be arrested is not justified in using unnecessary force.

People v. Delima

- *Facts:* Policeman Delima found fugitive Napilon and demanded his surrender. Napoleon attempted to attack with his bamboo lance but Delima evaded and fired his revolver. The bullet didn't hit Napilon, who then fled, still armed with the bamboo lance. In pursuit, Delima shot and killed Napilon.
- *Issue:* Is Delima's killing of Napilon justifiable? ***JUSTIFIABLE.***
- *Ruling:* Napilon, a fugitive and an armed one at that, was a danger to the public. Although proving fatal, the means by which Delima subdued him was justified as it was done in the lawful performance of a duty.

People v. Belbes

- *Facts:* When two students at prom approached the teacher-in-charge saying there seemed to be trouble, patrolman Belbes immediately went to the scene and fired gunshots without warning, killing Fernando Bataller, who happened to be just drunk and while vomiting, broke the bamboo splits he was holding on to.
- *Issue:* Is the killing of Bataller a lawful exercise of a right or office and, therefore, justifiable? ***UNJUSTIFIABLE***.
- *Ruling:* The justifying circumstance of self-defense was found incomplete. Although Belbes acted in the performance of his duty, the killing of the student was not a necessary consequence of the performance of his duty.

Lawful exercise of right or office

"Of right or office"

Doctrine of Self-Help under Article 429, Civil Code, applied in Criminal Law

- The owner or lawful possessor of a thing has the *right* to exclude any person from the enjoyment and disposal thereof. For this purpose, he may use such force as may be *reasonably necessary* to repel or prevent an actual or

threatened unlawful physical invasion or usurpation of his property.

- Unlawful aggression against the person charged with the protection of the property is not necessary
- If there is mere disturbance of possession, force may be used against it at any time as long as it continues.
- If there is real dispossession, force can be used only immediately after the dispossession.
- If the property is immovable, there should be no delay in the use of force to recover it..

Paragraph 6. Any person who acts in obedience to an order issued by a superior for some lawful purpose.

Lawful order of superior

Requisites

1. An *order* has been issued by a ***su****perior*.
2. Such an order must be for some *lawful* ***pur****pose*.
3. The **mean**s used by the subordinate to carry out said order is *lawful*.

* Mnemonic: **SUPERMAN**

- The order must be for some lawful purpose, but if the subordinate is not aware of the illegality of the order, he is not liable for carrying out the order.

People v. Beronilla

- *Facts:* Appellants Beronilla, et al. were charged with murder as conspirator and co-principals for trying and executing Mayor Borjal for treasonable acts, upon orders of a superior (Lt. Arnold). Beronilla also failed to receive a radiogram detailing the unlawfulness of the act.
- *Issue:* Was Borjal's execution at the hands of the appellants justifiable? ***JUSTIFIABLE.***
- *Ruling:* The appellants were acting under orders from Arnold and under a presumption that their acts were lawful since the radiogram failed to reach Beronilla.